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Lesson 19: Trust and Its Significance II (Summarized Notes)

Introduction

Trust is the foundation of successful personal and professional relationships.
It can be developed between individuals, organizations, and countries.
Higher trust leads to better cooperation and fewer conflicts.
Even when trust is low, it can be improved through appropriate strategies.

Significance of Trust

Trust can exist between individuals, companies, and nations.
High trust provides many personal and organizational benefits.
High trust is not always easy to achieve.
Business relationships help when trust is weak.
Low trust can gradually be transformed into high trust.

Advantages of High Trust

High trust reduces guesswork and uncertainty.
It decreases unnecessary rules and formalities.
It increases efficiency and productivity.
It creates a pleasant and comfortable work environment.
It promotes cooperation and teamwork.
It improves the overall quality of life.

Origins of Trust

Calculus-Based Trust

Develops through contracts, rules, and penalties.
People trust each other because breaking the agreement has consequences.
It is the easiest type of trust to establish.
Suitable even between strangers or opponents.
Can also develop through long-term business dealings.

Knowledge-Based Trust

Develops through regular communication and experience.
People trust each other after learning about each other's behavior.
It grows through repeated interactions and cooperation.
It is stronger than calculus-based trust.
Shared interests also strengthen this trust.

Identification-Based Trust

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Develops through shared values, loyalty, and emotional connection.
Common among close friends, families, and committed partners.
Organizations can build it through a strong organizational culture.
It is the hardest but strongest form of trust.

Effects of Trust

High trust strengthens cooperation.
It creates positive feelings and healthy relationships.
It improves communication and teamwork.
Low trust creates suspicion and competition.
Mistrust encourages people to hide information.
Lack of trust increases conflict and duplication of work.
Broken trust often damages long-term relationships.

Building Trust

Trust develops when people consistently fulfill their promises.
Breaking trust creates emotional reactions and conflict.
Confidence Building Measures (CBMs) help improve trust.
Trade between India and Pakistan is an example of trust-building through cooperation.
Honesty, consistency, and communication strengthen trust over time.

Business Relationships

Business relationships are useful when trust is low.
They reduce misunderstandings through clear agreements.
Emotions are kept separate from business decisions.
Written communication is preferred.
Fair and balanced evaluation methods are used.

Components of a Business Relationship

Explicit and detailed agreements.
Formal and preferably written communication.
No sharing of personal emotions.
Balanced and neutral assessment methods.

Effective Agreement Drafting

Well-written agreements prevent future conflicts.
They reduce misunderstandings.
They protect relationships when trust is limited.

Accuracy and Completeness

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The agreement should correctly record all negotiated terms.
Nothing should be added or omitted.

Clarity and Certainty

Rights and responsibilities should be clearly defined.
Payment methods, delivery dates, and procedures must be specified.

Flexibility

The agreement should allow adjustments for unexpected future situations.
It should balance certainty with adaptability.

Legal Enforceability

The agreement should be legally valid.
Required signatures and legal formalities must be completed.

Relationship Preservation

The agreement should use respectful language.
It should avoid misunderstanding and maintain fairness.
Its purpose is to protect long-term relationships.

Low Trust Situations

Trust is usually low in new relationships.
Trust decreases after betrayal.
Historical enemies often have low trust.
Broken close relationships also create mistrust.

Dealing with Low Trust

In close relationships, restore identification-based trust.
In business situations, create calculus-based trust through contracts.
Trust grows gradually with positive experiences.
Small successful interactions increase confidence over time.

Key Points for Developing a Trusting Environment

Remain calm and self-controlled.
Do not react emotionally.
Avoid assuming negative intentions.
Resolve trust issues privately.
Allow only respectful discussion.
Use "I" statements instead of blaming others.

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Focus on solving problems rather than attacking people.
Maintain the self-esteem of everyone involved.

Important Exam Points

Trust can be built between individuals, organizations, and countries.
High trust improves cooperation, efficiency, and quality of life.
The three types of trust are Calculus-Based Trust, Knowledge-Based Trust, and Identification-Based Trust.
Calculus-Based Trust is the easiest to establish.
Identification-Based Trust is the hardest but strongest form of trust.
Business relationships are useful when trust levels are low.
An effective agreement should be accurate, clear, flexible, legally enforceable, and preserve relationships.
Confidence Building Measures (CBMs) between India and Pakistan are an example of trust-building.
Low trust leads to competition, secrecy, and conflict.
Good communication and keeping promises are essential for building trust.

Very Important MCQs

1. Which type of trust is the easiest to establish?

- A. Identification-Based Trust
- B. Knowledge-Based Trust
- C. Emotional Trust
- D. ✓ Calculus-Based Trust

2. Which type of trust is the strongest but hardest to develop?

- A. Calculus-Based Trust
- B. Knowledge-Based Trust
- C. Social Trust
- D. ✓ Identification-Based Trust

3. Which of the following is an advantage of high trust?

- A. Increased conflict
- B. More guesswork
- C. Poor communication
- D. ✓ Greater cooperation and efficiency

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4. Which element is essential for an effective settlement agreement?

- A. Emotional language
- B. Verbal promises only
- C. Unclear responsibilities
- D. ✓ **Accuracy and completeness**

5. Confidence Building Measures (CBMs) mentioned in the lesson are associated with improving trust between:

- A. Pakistan and China
- B. Pakistan and Afghanistan
- C. India and China
- D. ✓ **India and Pakistan**

Lesson 20: Assessing Impediments to Resolve the Conflict I (Summarized Notes)

Introduction

Conflict is influenced by social, economic, and cultural factors.
Culture plays an important role in creating and shaping conflicts.
Individualism often becomes a source of interpersonal conflict.
At the community level, social structure and relationships contribute to conflict.
Understanding barriers to conflict resolution helps in managing disputes effectively.

Impediments to Resolving Interpersonal Conflict

Many factors prevent conflicts from being resolved peacefully.
These barriers increase misunderstanding and prolong disputes.
The first four major impediments are discussed in this lesson.

Fourteen Impediments to Conflict Resolution

Motivation to seek vengeance.
Meta-disputes.
Mistrust.
Vastly different perceptions of reality.
Over-commitment and entrapment.
Lack of ripeness.
Jackpot syndrome.
Loss aversion.
Linkages.
Conflicts of interest among team members.
Excluded stakeholders.
Disempowered disputant.

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Unpleasant disputant.
Competitive culture or subculture.

Motivation to Seek Vengeance

Vengeance encourages punishment instead of cooperation.
People may sacrifice mutual benefits to take revenge.
It usually develops after conflicts become intense.
Revenge makes conflict more emotional and difficult to solve.

Reasons for Seeking Revenge

People seek revenge to correct perceived injustice.
Some want to prove their self-worth.
Others wish to stop further harm from the other party.
Hostility and hatred increase the desire for revenge.
Anger creates rigid thinking and reduces flexibility.
Vengeful attitudes make conflict resolution very difficult.

Effects of Vengeance

It destroys opportunities for cooperation.
It increases anger and hostility.
It prolongs conflict.
It reduces creativity and problem-solving ability.
It prevents peaceful settlement.

Meta-Disputes

Meta-disputes are conflicts about how the original conflict is being handled.
They arise when disputes continue for a long time.
Complex conflicts often create more meta-disputes.
They shift attention away from the actual problem.

Preventing Meta-Disputes

Open and honest communication reduces misunderstandings.
A cooperative approach prevents unnecessary disputes.
Avoid making negative assumptions about others.
A neutral third party or mediator can resolve misunderstandings.
Early prevention is the best solution.

Mistrust

Mistrust is one of the biggest causes of conflict escalation.
Low trust creates suspicion and defensive behavior.
People become unwilling to cooperate.

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Information is often hidden.
Relationships become weaker.
Conflict becomes more difficult to resolve.

Vastly Different Perceptions of Reality

People may view the same situation differently.
Each person believes their opinion is correct.
Different perceptions of facts or laws create disagreement.
Strong beliefs make compromise difficult.
Neutral evidence or mediation is often needed to resolve such conflicts.

Importance of Understanding Impediments

Recognizing barriers helps resolve conflicts more effectively.
Awareness improves communication and cooperation.
Early identification prevents conflict from becoming more serious.
Proper conflict management creates healthier relationships.

Important Exam Points

Conflict is influenced by social, economic, and cultural factors.
There are fourteen major impediments to conflict resolution.
Motivation for vengeance is a major obstacle to cooperation.
Revenge increases hostility and prolongs conflict.
Meta-disputes are disputes about the way conflict is managed.
Open communication helps prevent meta-disputes.
Mistrust creates suspicion, defensive behavior, and conflict escalation.
Different perceptions of reality make conflict resolution difficult.
Mediators help resolve misunderstandings and conflicting perceptions.
Understanding impediments improves conflict management.

Very Important MCQs

1. Which factor encourages a person to punish the other party instead of cooperating?

- A. Trust
- B. Cooperation
- C. Communication
- D. ✓ **Motivation to seek vengeance**

2. Meta-disputes are disputes about:

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- A. Financial matters
 - B. Personal values
 - C. Cultural traditions
 - D. ✓ **The way a conflict is being handled**
-

3. Which factor is considered a major cause of conflict escalation?

- A. Mutual understanding
 - B. Honest communication
 - C. Cooperation
 - D. ✓ **Mistrust**
-

4. Vastly different perceptions of reality occur when:

- A. Both parties completely agree
 - B. There is no disagreement
 - C. Everyone shares the same facts
 - D. ✓ **Each disputant strongly believes their own view is correct**
-

5. What is the best way to deal with meta-disputes?

- A. Increase competition
 - B. Ignore the problem
 - C. Seek revenge
 - D. ✓ **Prevent them through open communication**
-

Lesson 21: Assessing the Impediments to Resolving the Conflict II (Summarized Notes)

Introduction

Conflict resolution becomes difficult when various barriers prevent cooperation. Understanding these impediments helps identify the real causes of conflict. Interest analysis is an effective tool for recognizing these obstacles. Removing these barriers increases the chances of peaceful settlement.

Summary of Major Impediments

Motivation to seek vengeance.
Meta-disputes.
Mistrust.

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Vastly different perceptions of reality.
Over-commitment and entrapment.
Lack of ripeness.
Jackpot syndrome.
Loss aversion.
Linkages.
Conflicts of interest among team members.
Excluded stakeholders.
Disempowered disputant.
Unpleasant disputant.
Competitive culture or subculture.

Over-Commitment and Entrapment

A disputant invests excessive time, money, and effort into the conflict.
The person feels trapped and unwilling to withdraw.
Fear of losing face keeps the conflict going.
Over-commitment prevents rational decision-making.
Avoiding loss of face helps reduce entrapment.

Four Ways to Avoid Over-Commitment

Set clear limits before negotiations begin.
Review the decision regularly during negotiations.
Evaluate both financial and non-financial costs.
Create opportunities for everyone to save face.

Lack of Ripeness

Some disputants are not ready to settle the conflict.
They believe continuing the dispute is better than resolving it.
Conflict is settled only when no better alternative exists.
Approaching deadlines, such as court trials, often create readiness for settlement.

Jackpot Syndrome

A disputant believes there is a chance of winning a huge reward.
The person refuses reasonable settlement offers.
This belief is often unrealistic.
Risk-taking behavior delays conflict resolution.
Education and realistic expectations help overcome this syndrome.

Loss Aversion

People prefer taking a risky chance rather than accepting a certain small loss.
Fear of immediate loss influences poor decisions.

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It is the opposite of Jackpot Syndrome.
Loss aversion often prolongs conflicts unnecessarily.

Linkages

One conflict becomes connected with other conflicts or parties.
Resolving one dispute may affect several other situations.
These connections make settlement more difficult.
Interest analysis helps identify linked relationships and hidden interests.

Importance of Interest Analysis

Interest analysis identifies the real needs of disputants.
It reveals hidden relationships and concerns.
Understanding interests improves conflict resolution.
Ignoring underlying interests can worsen conflicts.

Conflicts of Interest Among Team Members

Different team members may have different goals.
One solution may satisfy one member but disappoint another.
Agents or representatives may have conflicting interests.
Separate conflict resolution may be required within the team.
Representatives should withdraw if conflicts of interest become harmful.

Excluded Stakeholders

Important people may be left out of negotiations.
Excluded individuals often oppose the settlement.
They may try to sabotage the agreement.
Everyone with a significant interest should be involved in negotiations.

Disempowered Disputant

A disempowered disputant feels weak or powerless.
The person fears being exploited.
Lack of knowledge creates uncertainty.
Such disputants hesitate to accept settlements.
Empowering them increases confidence and cooperation.

Unpleasant Disputant

Some people have personalities that create hostility.
Their behavior makes cooperation difficult.
Others become unwilling to help or compromise.
Creating appropriate distance may reduce tension.
Professional behavior improves communication.

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Competitive Culture or Subculture

Some cultures encourage competition instead of cooperation.
People expect conflicts to have winners and losers.
Cooperative efforts may be misunderstood or exploited.
Changing incentives or moving negotiations to a neutral setting encourages cooperation.
The legal profession is a common example of a competitive subculture.

Importance of Identifying Impediments

Recognizing active barriers improves conflict diagnosis.
Interest analysis helps identify the real causes of disputes.
Removing impediments increases the possibility of successful conflict resolution.
Awareness leads to better negotiation and long-term relationships.

Important Exam Points

There are fourteen major impediments to conflict resolution.
Over-commitment leads to entrapment and fear of losing face.
Four methods reduce over-commitment: setting limits, reviewing decisions, evaluating costs, and saving face.
Lack of ripeness means disputants are not yet ready to settle.
Jackpot Syndrome is the unrealistic hope of winning a huge reward.
Loss Aversion is the preference for risky uncertainty over accepting a certain small loss.
Linkages connect one conflict with other conflicts or parties.
Interest analysis identifies hidden interests and relationships.
Excluded stakeholders often oppose or sabotage settlements.
Disempowered disputants require empowerment to negotiate confidently.
Competitive cultures encourage conflict rather than cooperation.

Very Important MCQs

1. Over-commitment mainly causes disputants to feel:

- A. Relaxed
- B. Cooperative
- C. Motivated to compromise
- D. ✓ **Trapped and unwilling to withdraw**

2. Lack of ripeness means that:

- A. The conflict has already ended
- B. Both parties trust each other completely

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- C. The agreement is legally invalid
 - D. ✓ **One or both parties are not yet ready to settle**
-

3. Jackpot Syndrome refers to:

- A. Avoiding all risks
 - B. Accepting every settlement offer
 - C. Losing interest in negotiation
 - D. ✓ **Unrealistically hoping for a very large reward**
-

4. Which technique helps identify hidden interests and linked conflicts?

- A. Brainstorming
 - B. Arbitration
 - C. Observation
 - D. ✓ **Interest analysis**
-

5. An excluded stakeholder usually:

- A. Supports every settlement
- B. Remains neutral in all situations
- C. Leaves the conflict permanently
- D. ✓ **May oppose or sabotage the settlement process**

Lesson 22: Negotiation Styles (Summarized Notes)

Introduction

Conflict can be resolved through different methods.

Common conflict resolution methods include negotiation, mediation, arbitration, and adjudication.

Negotiation is the most commonly used method in cooperative conflicts.

The choice of negotiation style depends on the situation and the people involved.

Conflict Resolution Methods

Negotiation.

Mediation.

Arbitration.

Adjudication.

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Negotiation

Negotiation is a process of discussion to resolve disputes or reach agreements.
It may involve face-to-face communication, dialogue, or written exchange.
Most cooperative conflicts are settled through negotiation.
Its goal is to achieve a mutually acceptable solution.

Negotiation Style

A negotiation style is a strategy used during conflict resolution.
It is different from a tactic because it reflects an overall approach.
The best style depends on the type of conflict and the personalities of the disputants.
People often choose styles based on their strengths and preferences.

Deutsch's Model

Deutsch explained conflict as either cooperative or competitive.
The model focuses on the direction of conflict rather than individual behavior.
It helps explain whether conflict is moving toward cooperation or competition.

Limitations of Deutsch's Model

It does not explain how disputants perceive themselves.
It focuses on conflict rather than individual positions.
It assumes only one form of cooperation.
In reality, different cooperative strategies exist.
Examples include problem-solving and accommodating approaches.

Dual Concern Model

The Dual Concern Model explains negotiation styles based on concern for self and concern for others.
It identifies five major negotiation styles.
Each style is useful in different situations.

Five Negotiation Styles

Avoiding Style.
Dominating (Competing) Style.
Obliging (Accommodating) Style.
Integrating (Collaborating/Problem-Solving) Style.
Compromising Style.

Avoiding Style

Represents low concern for self and low concern for others.
People avoid conflict instead of confronting it.

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Useful when the issue is unimportant or emotions are high.
The turtle is the symbol of this style because it hides inside its shell.

Dominating (Competing) Style

Represents high concern for self and low concern for others.
People focus on achieving their own goals.
Useful in emergencies or when quick decisions are required.
The lion symbolizes this style because it uses strength and authority.

Obliging (Accommodating) Style

Represents low concern for self and high concern for others.
People give priority to maintaining relationships.
Useful when preserving harmony is more important than winning.
The chameleon symbolizes this style because it adjusts to its surroundings.

Integrating (Collaborating/Problem-Solving) Style

Represents high concern for both self and others.
Both parties work together to find the best solution.
This style produces win-win outcomes.
It strengthens long-term relationships.
The dolphin symbolizes this style because of teamwork and cooperation.

Compromising Style

Represents moderate concern for self and others.
Each party gives up something to reach an agreement.
It provides a balanced and practical solution.
Useful when both sides have equal power.
The zebra symbolizes this style because it represents balance.

Pareto Efficiency

Pareto efficiency means resources are allocated to maximize benefits for everyone.
A solution is considered efficient when no one can be made better off without making someone else worse off.
It aims to create the highest overall value for all participants.

Choosing the Right Negotiation Style

No single negotiation style is best for every situation.
Effective negotiators adjust their style according to the conflict.
Flexibility improves negotiation success.
The situation determines which style should be used.

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Important Exam Points

Negotiation is one of the primary methods of alternative dispute resolution.

Negotiation is a strategy, not a tactic.

Deutsch's Model classifies conflict as cooperative or competitive.

The main limitation of Deutsch's Model is that it does not explain individual perceptions and different forms of cooperation.

The Dual Concern Model is based on concern for self and concern for others.

The five negotiation styles are Avoiding, Dominating, Obliging, Integrating, and Compromising.

Avoiding Style = Turtle.

Dominating Style = Lion.

Obliging Style = Chameleon.

Integrating Style = Dolphin.

Compromising Style = Zebra.

Integrating (Collaborating) Style usually produces the best win-win solution.

Pareto Efficiency means maximizing benefits for all participants.

Very Important MCQs

1. Which conflict resolution method is most commonly used in cooperative conflicts?

- A. Arbitration
- B. Adjudication
- C. Litigation
- D. ✓ **Negotiation**

2. The Dual Concern Model is based on concern for:

- A. Rules and laws
- B. Time and money
- C. Power and authority
- D. ✓ **Self and others**

3. Which animal represents the Integrating (Collaborating) Style?

- A. Lion
- B. Turtle
- C. Zebra
- D. ✓ **Dolphin**

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4. Which negotiation style reflects high concern for self and low concern for others?

- A. Avoiding Style
 - B. Compromising Style
 - C. Accommodating Style
 - D. ✓ **Dominating (Competing) Style**
-

5. Pareto Efficiency refers to:

- A. Avoiding all negotiations
- B. Winning at any cost
- C. Giving up all personal interests
- D. ✓ **Maximizing overall benefits for all participants**

Lesson 23: Negotiation Styles and Integrating Strategy (Summarized Notes)

Introduction

Different negotiation styles produce different outcomes.
The best negotiators choose their style according to the situation.
The integrating style is generally the most effective for achieving win-win solutions.
However, no single style works in every conflict.

Objectives of Negotiation Styles

Preserve cooperation between disputants.
Protect personal interests when necessary.
Understand effective negotiation skills.
Identify personal and others' negotiation styles.
Develop win-win solutions through proper strategies.

Dual Concern Model

The Dual Concern Model is based on concern for self and concern for others.
It explains five major negotiation styles.
Each style has strengths and weaknesses.
The appropriate style depends on the conflict situation.

Limitation of the Dual Concern Model

The model assumes all disputants have positive intentions.
In reality, some people may intentionally harm others.
Some disputants may behave irrationally or emotionally.
Negotiation style is an overall strategy rather than a single tactic.

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The Parable of the Two Sisters and the Orange

The story explains how different negotiation styles affect outcomes.
Two sisters both want the same orange.
Each negotiation style produces a different result.

Avoiding Style

Neither sister takes action.
The orange remains unused and eventually spoils.
Both sisters remain dissatisfied.
Resources are completely wasted.

Dominating (Competing) Style

One sister wins the orange.
The winner gets what she wants.
The other sister remains unhappy.
Part of the orange is wasted.

Obliging (Accommodating) Style

Each sister insists the other should have the orange.
If neither accepts it, the orange spoils.
If one accepts it, the result is similar to the dominating style.
Cooperation exists but resources may still be wasted.

Compromising Style

The orange is divided into two halves.
Each sister receives only part of what she wants.
Both are only partially satisfied.
Some of the orange remains unused.

Integrating (Collaborating/Problem-Solving) Style

The sisters discuss their actual needs.
One sister needs the juice.
The other needs the peel.
The orange is fully utilized.
Both sisters are completely satisfied.
This creates a true win-win solution.

Considerations for Choosing a Negotiation Style

Choose a style that encourages cooperation.
Protect your own interests when necessary.

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Integrating style is useful when power differences exist.
Interest analysis is essential for successful integration.
Creative problem-solving helps satisfy everyone's needs.
Integrating and compromising require cooperation from both parties.

Situations Where Integrating Style Is Difficult

The stronger party refuses to cooperate.
One disputant lacks knowledge or power.
The conflict involves forced litigation.
There is limited time or mental energy.
Some people have limited problem-solving abilities.

Tactics Used in Integrating Style

Expanding the Pie

Increase the available resources.
Both parties receive greater benefits.

Cutting Costs

Reduce expenses to increase total value.
Lower costs improve overall outcomes.

Nonspecific Compensation

Provide something different in exchange.
The compensation is unrelated to the original issue.

Logrolling

Exchange items that have different values to each party.
Each side gains something important.

Bridging

Focus on underlying interests rather than fixed positions.
This creates creative and lasting solutions.
Bridging is the foundation of effective integrative negotiation.

Importance of Integrating Style

Produces win-win outcomes.
Strengthens long-term relationships.
Encourages cooperation and trust.

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Uses creativity to satisfy both parties.

Although it is the best negotiation style, it cannot be applied in every situation.

Important Exam Points

The Integrating Style is considered the best negotiation style for achieving win-win solutions.

The Dual Concern Model is based on concern for self and concern for others.

The Orange Story explains the outcomes of all five negotiation styles.

Avoiding leads to total waste of resources.

Dominating creates one winner and one loser.

Compromising gives partial satisfaction to both parties.

Integrating satisfies both parties by identifying underlying interests.

Interest analysis is necessary for successful integrative negotiation.

The five tactics of integrating are Expanding the Pie, Cutting Costs, Nonspecific Compensation, Logrolling, and Bridging.

Bridging focuses on interests rather than positions.

Integrating style may not work when there is lack of cooperation, power imbalance, limited time, or limited cognitive ability.

Very Important MCQs

1. Which negotiation style produces a true win-win solution?

- A. Avoiding Style
- B. Compromising Style
- C. Dominating Style
- D. ✓ **Integrating (Collaborating) Style**

2. In the story of the two sisters and the orange, the Integrating Style resulted in:

- A. Both sisters remained unhappy
- B. The orange was wasted
- C. The orange was divided equally
- D. ✓ **Both sisters fully satisfied their different needs**

3. Which tactic focuses on identifying underlying interests instead of positions?

- A. Logrolling
- B. Cutting Costs
- C. Expanding the Pie
- D. ✓ **Bridging**

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4. Which tactic increases the total resources available to both parties?

- A. Bridging
- B. Nonspecific Compensation
- C. Logrolling
- D. ✓ **Expanding the Pie**

5. Which of the following is a limitation of the Integrating Style?

- A. It always works in every conflict.
- B. It requires no cooperation from disputants.
- C. It ignores underlying interests.
- D. ✓ **It may not work when one party refuses to cooperate or lacks power.**

Lesson 24: Power and Conflict Management (Summarized Notes)

Introduction

Power is an important element in conflict management.
It is not limited to physical force.
Power influences people, relationships, and situations.
Understanding power helps resolve interpersonal conflicts effectively.

Definition of Power

Power is the ability to deliberately influence people or situations.
It changes behavior, relationships, or the environment.
Power can be used for both positive and negative purposes.
It is an important tool in conflict resolution.

Equal Power Relationship

An equal power relationship exists when neither person dominates the other.
Peacemaking aims to establish balanced power.
Balanced power reduces future conflicts.
Transformative justice is based on equal power and ethical decision-making.

Types of Power

Power is divided into two major types.

Formal Power.
Informal Power.

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Formal Power

Formal power comes from authority and organizational hierarchy.
It is associated with official positions.
Superiors exercise power over subordinates.
Formal power is unequal and one-directional.
It follows a top-down approach.

Informal Power

Informal power comes from personal qualities and resources.
It is not linked to organizational position.
It depends on acceptance by others.
It creates feelings of empowerment and influence.
Personal skills and relationships strengthen informal power.

Conflict and Power

Conflict and power are closely connected.
People often use power to gain advantage during conflicts.
Understanding different forms of power improves conflict diagnosis.
Power is more than force; it also involves influence and relationships.

Uses of Power

Power helps comfort, guide, and influence others.
It helps rebuild lives after disasters.
It is used in teaching, leadership, politics, and business.
Power encourages positive behavioral change.
It can also support successful negotiations and settlements.

Domains of Power

Power operates in three major domains.

Environmental Domain

Power influences a person's surroundings.
It changes physical or social conditions.

Relationship Domain

Power influences interactions between people.
This is the most important domain in conflict management.

Personal Domain

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Power influences an individual's own interests and decisions.
It helps evaluate alternatives during negotiations.

Kinds of Power in the Relationship Domain

Coercive Power.
Reward/Exchange Power.
Referent Power.
Normative Power.
Expert Power.
Ecological Power.

Coercive Power

Coercive power uses threats or punishment.
It creates fear through negative consequences.
Examples include physical force, legal action, or financial penalties.
It produces immediate influence.
Overuse damages trust and future relationships.
Heavy reliance on coercion reduces other forms of influence.

Reward/Exchange Power

Reward power influences others by offering benefits.
People cooperate because they receive something valuable.
Examples include rewards, incentives, promotions, or settlements.
It works best when rewards are fair.
Using rewards as hidden threats reduces effectiveness.

Referent Power

Referent power comes from personal attractiveness and charisma.
People willingly follow admired individuals.
Celebrities often use referent power through endorsements.
Its effectiveness depends on the audience.
Misusing referent power reduces credibility.

Normative Power

Normative power comes from moral values and ethical principles.
People influence others by appealing to what is right.
It encourages fairness and justice.
Both personal values and social norms create normative power.
It often increases respect and influence.

Limitations of Normative Power

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Normative power fails if others do not share the same values.
People with opposing beliefs may reject moral arguments.
Strong support groups can strengthen resistance.
Different social values reduce its effectiveness.

Importance of Power in Conflict Resolution

Power helps influence attitudes and behavior.
Positive use of power encourages cooperation.
Relationship power plays the greatest role in resolving conflicts.
Understanding different types of power improves negotiation and conflict management.

Important Exam Points

Power is the deliberate ability to influence people or situations.
Power includes both positive and negative forms of influence.
The two major types of power are Formal Power and Informal Power.
Formal Power is based on organizational hierarchy.
Informal Power is based on personal influence and acceptance.
The three domains of power are Environmental, Relationship, and Personal.
Relationship Domain is the most important in conflict management.
The six relationship powers are Coercive, Reward/Exchange, Referent, Normative, Expert, and Ecological.
Coercive Power uses threats and punishment.
Reward Power influences through incentives.
Referent Power comes from charisma and attraction.
Normative Power is based on moral values and ethical principles.
Overuse of coercive power damages future relationships.

Very Important MCQs

1. Power is best defined as the ability to:

- A. Control money only
- B. Use physical force only
- C. Punish others only
- D. ✓ **Deliberately influence people or situations**

2. Which type of power is based on organizational hierarchy?

- A. Informal Power
- B. Referent Power
- C. Normative Power
- D. ✓ **Formal Power**

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3. Which domain of power is most important in conflict management?

- A. Personal Domain
- B. Environmental Domain
- C. Political Domain
- D. ✓ Relationship Domain

4. Which type of power influences people through rewards and incentives?

- A. Coercive Power
- B. Referent Power
- C. Normative Power
- D. ✓ Reward/Exchange Power

5. Normative Power is mainly based on:

- A. Wealth and property
- B. Physical strength
- C. Organizational authority
- D. ✓ Moral values and ethical principles

Lesson 25: Power, Alienation and Context (Summarized Notes)

Introduction

Power is effective only when used appropriately.
Different types of power have different effects on relationships.
The use of power can strengthen or damage trust.
Understanding alternatives in negotiation helps increase effective use of power.

Expert Power

Expert power is the power of knowledge and expertise.
People accept influence because they trust the expert's knowledge.
It is one of the most effective forms of positive influence.
Legal professionals and mediators rely heavily on expert power.
It is the least likely type of power to escalate conflict.

Importance of Expert Power

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Builds trust and credibility.
Encourages informed decision-making.
Helps resolve disputes peacefully.
Creates cooperation through knowledge instead of force.
Maintains long-term relationships.

Misuse of Expert Power

Expert power loses effectiveness if used dishonestly.
False claims of knowledge create mistrust.
People stop believing the expert.
Misuse weakens credibility and future influence.
Dishonest use may increase conflict.

Ecological Power

Ecological power is the ability to influence others by changing the environment.
It indirectly affects people's decisions and behavior.
It often supports other forms of power such as coercive or reward power.
Its effects depend on how it is used.

Effects of Ecological Power

It can encourage positive behavior.
It may also increase conflict if used unfairly.
Manipulating the environment for harmful purposes damages relationships.
Its effectiveness depends on the situation.

Power and Alienation

Alienation means becoming distrustful, hostile, or unwilling to cooperate with another person.
Improper use of power creates alienation.
Alienation damages relationships and reduces cooperation.
It weakens future influence.

Types of Power and Alienation

Coercive power creates the highest level of alienation.
Expert power creates the lowest level of alienation.
Illegitimate or unfair use of any power increases hostility.
Trust decreases when people feel manipulated.

Sources of Relationship Power

Power comes from different personal and social resources.
Money and wealth increase influence.

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Knowledge and education strengthen expert power.
Personal appearance and communication improve referent power.
Moral values increase normative power.
Social roles and responsibilities also create power.

Six Types of Relationship Power

Coercive Power

Influences through threats or punishment.
Creates the highest level of alienation.
Useful only in limited situations.

Reward/Exchange Power

Influences by offering rewards or benefits.
Works best when rewards are fair.
Can lose effectiveness if overused.

Referent Power

Comes from attractiveness, respect, and charisma.
People willingly follow admired individuals.
Produces moderate alienation.

Normative Power

Based on moral values and ethical principles.
Influences people through fairness and justice.
Creates moderate alienation.

Expert Power

Based on knowledge and experience.
Builds trust and cooperation.
Creates the least alienation.

Ecological Power

Influences by controlling or changing the environment.
Its impact depends on how it is applied.
Can support both positive and negative outcomes.

Context and Power

Power is always context-dependent.
The same power may work differently in different situations.

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Power depends on the person being influenced.
Situation and environment affect the effectiveness of power.

Power and Negotiation

Knowing your alternatives strengthens your bargaining position.
The best alternative to a negotiated agreement increases negotiation power.
Power should be used wisely to preserve relationships.
Effective negotiators choose the most suitable form of power.

Key Idea About Power

Having power also brings responsibility.
Powerful people often face pressure and anxiety.
Sometimes less powerful people experience greater peace of mind.
Proper use of power creates cooperation instead of conflict.

Important Exam Points

Expert Power is based on knowledge and expertise.
Expert Power is the least likely to create conflict escalation.
Ecological Power influences people by changing the environment.
Alienation means mistrust, hostility, and unwillingness to cooperate.
Coercive Power creates the highest level of alienation.
Expert Power creates the lowest level of alienation.
The six relationship powers are Coercive, Reward/Exchange, Referent, Normative, Expert, and Ecological.
Money, education, social roles, and personal qualities are important sources of power.
Power is always context-dependent.
Effective use of power strengthens negotiation and conflict resolution.

Very Important MCQs

1. Which type of power is based on knowledge and expertise?

- A. Referent Power
- B. Coercive Power
- C. Normative Power
- D. ✓ Expert Power

2. Which type of power creates the highest level of alienation?

- A. Expert Power
- B. Referent Power

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- C. Reward Power
 - D. ✓ **Coercive Power**
-

3. Ecological Power mainly influences others by:

- A. Using moral values
 - B. Offering rewards
 - C. Using expert knowledge
 - D. ✓ **Manipulating the environment**
-

4. Alienation refers to becoming:

- A. More cooperative
 - B. More knowledgeable
 - C. More confident
 - D. ✓ **Mistrustful and unwilling to cooperate**
-

5. Which statement about power is correct?

- A. Power is always effective in every situation.
 - B. Power depends only on physical strength.
 - C. Expert Power creates the highest alienation.
 - D. ✓ **Power is context-dependent and varies with the situation.**
-

Lesson 26: Power, Conflict and BATNA (Summarized Notes)

Introduction

Power and conflict are closely connected.
Effective negotiation depends on understanding power and available alternatives.
BATNA helps negotiators make better decisions.
A strong BATNA increases bargaining power and confidence.

Key Concepts

Power is the ability to influence behavior or situations.
Conflict is a clash of interests between individuals or groups.
BATNA stands for **Best Alternative to a Negotiated Agreement**.
A stronger BATNA leads to stronger negotiation.

BATNA (Best Alternative to a Negotiated Agreement)

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BATNA was introduced by **Roger Fisher** and **William Ury** in 1981.
It is the best available option if negotiation fails.
Negotiators should always know their BATNA before negotiating.
A strong BATNA improves negotiating position.
Making your BATNA known may increase your bargaining power.

Importance of BATNA

Protects negotiators from making poor decisions.
Prevents accepting unfavorable agreements.
Reduces unnecessary pressure during negotiation.
Saves time, money, effort, and emotional stress.
Provides confidence during conflict resolution.

Role of Third Party in BATNA

Third parties help disputants evaluate their BATNA.
They perform reality testing.
They help estimate costs and benefits.
They make alternatives more realistic.
Their guidance improves decision-making.

Steps in BATNA Assessment

Conduct Interest Analysis.
Brainstorm Alternatives.
Fine-tune the Alternatives.
Assess Each Alternative Realistically.
Choose the Best Alternative.
Regularly Reassess the BATNA.

Conduct Interest Analysis

Identify needs, goals, and interests.
Understand what each disputant wants.
Interest analysis is the foundation of BATNA.

Brainstorm Alternatives

Identify all possible alternatives.
Consider negotiation, litigation, personal efforts, or other options.
Generate as many realistic alternatives as possible.

Fine-Tune the Alternatives

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Improve and organize the alternatives.
Use personal and environmental power where possible.
Develop practical options.

Assess Each Alternative Realistically

Evaluate both costs and benefits.
Consider financial and non-financial factors.
Think about relationships, time, stress, and conflict escalation.
Choose realistic options.

Choose the Best Alternative

Compare all alternatives carefully.
Select the option with the greatest overall benefit.
This option becomes the BATNA.

Regularly Reassess the BATNA

Circumstances may change over time.
New opportunities may appear.
Old alternatives may disappear.
BATNA should be updated regularly.

Knowing the Other Disputant's BATNA

Understanding the opponent's BATNA improves negotiation.
A strong BATNA gives the other party greater bargaining power.
Knowing their alternatives helps predict their decisions.
It improves negotiation strategy.

Litigation and BATNA

Legal disputes often involve choosing between settlement and court action.
Lawyers estimate the value of a case before deciding.
Case valuation helps determine the best alternative.

Factors Used in Case Valuation

Experience with similar cases.
Knowledge of applicable law.
Knowledge of the judge.
Credibility of witnesses.
Strength of evidence.
Assessment of opposing lawyer.
Institutional experience.

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Drawbacks of BATNA Analysis

BATNA is sometimes difficult to estimate accurately.
People may ignore non-financial consequences.
BATNA analysis can require significant time and resources.
It may not apply well to close family or long-term personal relationships.

Power Imbalance

Power imbalance exists when one party has more influence than another.
Unequal power affects negotiation choices.
Power differences influence conflict outcomes.
Complete equality of power rarely exists.

Group Power Imbalance

Powerful groups often use coercion.
Power imbalance strengthens existing inequalities.
Weaker groups may eventually resist unfair treatment.
Long-term imbalance can lead to serious conflict.

Becoming Empowered

Power increases available choices.
Empowerment improves negotiation outcomes.
People become empowered by increasing their power.
They can also improve how they use existing power.
Expert power is the easiest and safest power to strengthen.

Dealing with Power Imbalance

Some experts prefer legal action to reduce imbalance.
Others support less competitive methods.
No single solution works for every conflict.
Each situation requires careful analysis.

Implications for Conflict Diagnosis

Power exists in personal, environmental, and relationship domains.
Power changes according to the situation.
Conflict specialists should identify available sources of power.
There is no universal solution for power imbalance.
Every conflict requires careful diagnosis and interest analysis.

Important Exam Points

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BATNA stands for **Best Alternative to a Negotiated Agreement**.

BATNA was developed by **Roger Fisher** and **William Ury** in 1981.

A strong BATNA increases negotiating power.

BATNA protects negotiators from making poor decisions.

The six BATNA assessment steps are Interest Analysis, Brainstorming Alternatives, Fine-Tuning Alternatives, Realistic Assessment, Choosing the Best Alternative, and Regular Reassessment.

Third parties assist through reality testing and cost analysis.

Case valuation helps determine BATNA in legal disputes.

Power imbalance affects negotiation and conflict outcomes.

Expert Power is the safest form of power to strengthen.

Power operates in Personal, Environmental, and Relationship domains.

There is no "magic solution" for power imbalance.

Very Important MCQs

1. BATNA stands for:

- A. Best Agreement to Negotiate Alternatives
- B. Better Alternative to Negotiated Action
- C. Basic Agreement Through Negotiation
- D. ✓ **Best Alternative to a Negotiated Agreement**

2. Who introduced the concept of BATNA?

- A. Karl Popper and Edmund Burke
- B. Martin Luther King Jr. and John Kennedy
- C. Roger Fisher and Benjamin Franklin
- D. ✓ **Roger Fisher and William Ury**

3. Which is the first step in BATNA assessment?

- A. Choose the best alternative
- B. Assess each alternative
- C. Brainstorm alternatives
- D. ✓ **Conduct Interest Analysis**

4. Which type of power is considered the easiest and safest to strengthen?

- A. Coercive Power
- B. Reward Power

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- C. Referent Power
- D. ✓ **Expert Power**

5. Which statement about BATNA is correct?

- A. BATNA is useful only in court cases.
- B. BATNA reduces negotiating power.
- C. BATNA should never be reassessed.
- D. ✓ **A strong BATNA improves bargaining power and decision-making.**

Lesson 27: Stereotypes, Diversity, and Conflict I (Summarized Notes)

Introduction

Stereotypes, culture, and diversity strongly influence interpersonal conflict. People often judge others based on social groups instead of individual qualities. Understanding stereotypes helps reduce misunderstandings and resolve conflicts effectively.

What is a Stereotype?

Stereotype is an oversimplified generalization about people belonging to a particular group.

It assigns similar qualities, attitudes, or behaviors to all members of that group. Stereotypes often ignore individual differences.

What is Prejudice?

Prejudice is an unsupported judgment or opinion about an individual or group.

It is usually negative and based on stereotypes.

Prejudice often results in discrimination and unfair treatment.

Result of Prejudice

Prejudice leads to discrimination against individuals or groups.

It creates division instead of integration.

It increases misunderstandings and conflict.

Categories of Diversity Issues

1. Stereotyping

People judge others based on group membership instead of personal qualities.

It influences thoughts, behavior, and decision-making.

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2. Culture

Language, beliefs, values, traditions, and attitudes toward conflict differ among cultures.

Cultural differences affect communication and conflict resolution.

3. Power

Some social groups possess more power than others.

Power differences may lead to discrimination, prejudice, and unequal treatment.

Relationship Between Diversity Issues

Stereotyping, culture, and power are closely connected.

One issue often influences the others during interpersonal conflicts.

Stereotyping in Everyday Life

People often believe that "first impression is the last impression."

Many first impressions are actually based on stereotypes.

Every human naturally uses stereotypes as part of thinking.

Effects of Stereotypes

Stereotypes can produce incorrect judgments about people.

They make individuals feel insulted, embarrassed, or unfairly treated.

Wrong assumptions increase conflict and reduce cooperation.

Stereotyping in Interpersonal Conflict

Incorrect stereotypes lead to poor decisions and wrong conflict strategies.

Feeling stereotyped creates anger and increases conflict escalation.

Healthy communication becomes difficult.

Why People Use Stereotypes

People use stereotypes because they save time and mental effort.

They rely on stereotypes when they have limited time or information.

People use careful and accurate thinking only when they have enough time and a strong desire to understand others correctly.

Systematic Processing

People carefully analyze others only when:

There is enough time and resources available.

They are highly motivated to understand the situation accurately.

Otherwise, they depend on stereotypes for quick judgments.

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Importance of Understanding Stereotypes

Understanding stereotypes helps avoid false assumptions.

It improves communication and relationships.

It reduces prejudice and supports effective conflict resolution.

Important Exam Points

Stereotype is an oversimplified generalization about a social group.

Prejudice is an unsupported judgment based on stereotypes.

Prejudice often leads to discrimination.

The three diversity issues are stereotyping, culture, and power.

Every human naturally uses stereotypes as part of cognitive processing.

Stereotypes can lead to incorrect judgments and conflict escalation.

People use systematic processing only when they have enough time and motivation.

Understanding stereotypes improves conflict management and communication.

Very Important MCQs

1. A stereotype is:

- A. A detailed study of personality
- B. An oversimplified generalization about a group ✓
- C. A legal agreement
- D. A communication barrier

2. Prejudice mainly depends upon:

- A. Facts and evidence
- B. Scientific research
- C. Stereotypes ✓
- D. Intelligence

3. Which of the following is NOT a category of diversity issues?

- A. Stereotyping
- B. Culture
- C. Power
- D. Leadership ✓

4. People are most likely to use stereotypes when they:

- A. Have plenty of time and motivation
- B. Carefully analyze every person
- C. Have limited time and limited information ✓
- D. Conduct detailed research

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5. Understanding stereotypes helps to:

- A. Increase prejudice
- B. Escalate conflicts
- C. Improve conflict resolution and communication ✓
- D. Create discrimination

Lesson 28: Stereotypes, Diversity, and Conflict II (Summarized Notes)

Introduction

Diversity means differences among people.

Differences in culture, beliefs, language, and social groups often become sources of conflict.

Understanding diversity and stereotypes helps reduce misunderstandings and improve conflict resolution.

Categories of Diversity Issues

1. Stereotyping

Stereotyping means assigning qualities, attitudes, or behaviors to people based on their social group.

It often leads to incorrect judgments.

2. Culture

Culture includes language, values, beliefs, traditions, and attitudes toward conflict. Different cultures respond to conflicts in different ways.

3. Power

Power differences exist among social groups.

Unequal power may lead to prejudice, discrimination, and conflict.

Relationship Among Diversity Issues

Stereotyping, culture, and power influence one another.

Together they shape people's attitudes and behavior during conflicts.

Why People Stereotype

Stress and Complexity

Stressful and complicated situations increase the use of stereotypes.

People prefer quick judgments instead of careful thinking.

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Personal Factors

Fatigue, illness, hunger, and strong emotions increase the tendency to stereotype. Mental overload reduces accurate judgment.

Lack of Familiarity

People stereotype more when they do not know the individual or the person's social group.

Limited knowledge increases false assumptions.

Social Group Salience

People are more likely to notice obvious social group differences.

Visible characteristics make stereotypes stronger.

Strong Social Categories

Strong categories are social groups that are more likely to be stereotyped.

Physical Characteristics

Visible features like skin color, hair color, facial appearance, and body size attract stereotypes.

Gender Roles

Traditional gender roles create strong stereotypes about men and women.

Rigid Social Roles

Groups with fixed or traditional roles are more likely to be stereotyped.

Seven Mental Processes that Reinforce Stereotypes

1. Ignoring

People ignore information that contradicts their stereotypes.

2. Explaining Away

Behavior against stereotypes is treated as an exception or special case.

3. Memory Intrusion

People remember or imagine stereotype-consistent events even if they never happened.

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4. Selective Weighting

People give more importance to information that supports stereotypes.

5. Stereotype Over-Interpretation

Small truths are exaggerated and applied to the entire group.

6. Stereotype-Consistent Perception

People interpret unclear situations in ways that confirm existing stereotypes.

7. Active Confirmation Processes

People behave toward others according to stereotypes.

This behavior creates self-fulfilling prophecies that strengthen stereotypes.

Additional Processes Supporting Stereotypes

Fundamental Attribution Error

Behavior caused by social roles is wrongly considered part of a person's natural character.

Behavioral Confirmation

Treating people according to stereotypes often causes them to behave as expected.

Data Collection Errors

Society often provides information that supports existing stereotypes while ignoring contradictory evidence.

Importance of Understanding Stereotypes

Recognizing stereotype processes helps reduce prejudice.

It improves communication and conflict management.

Awareness promotes fairness and better interpersonal relationships.

Important Exam Points

Diversity mainly consists of stereotyping, culture, and power.

Stress, fatigue, illness, hunger, and emotions increase stereotyping.

Lack of familiarity with people or groups promotes stereotypes.

Strong categories include visible physical traits and gender roles.

There are seven major mental processes that reinforce stereotypes.

Ignoring and explaining away are common stereotype confirmation processes.

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Behavioral confirmation creates self-fulfilling prophecies.
Understanding stereotype processes helps reduce conflict and prejudice.

Very Important MCQs

1. Diversity issues mainly include:

- A. Leadership, planning, and finance
- B. Stereotyping, culture, and power ✓
- C. Motivation, personality, and memory
- D. Communication, marketing, and ethics

2. Which factor increases the likelihood of stereotyping?

- A. Adequate rest and relaxation
- B. Stress and situational complexity ✓
- C. Complete knowledge about others
- D. Long-term friendship

3. Which of the following is a strong social category?

- A. Favorite color
- B. Gender roles ✓
- C. Hobbies
- D. Education level

4. Which stereotype confirmation process involves treating contradictory behavior as an exception?

- A. Ignoring
- B. Explaining Away ✓
- C. Selective Weighting
- D. Memory Intrusion

5. Behavioral confirmation refers to:

- A. Collecting scientific evidence
- B. Creating a self-fulfilling prophecy through stereotypical behavior ✓
- C. Avoiding communication
- D. Solving conflicts through negotiation

Lesson 29: Stereotypes, Diversity and Conflict III (Summarized Notes)

Introduction

People form opinions about others either by carefully analyzing information or by relying on stereotypes.

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Culture, self-concept, and thinking patterns strongly influence conflict and negotiation. Understanding these concepts helps reduce prejudice and improve conflict resolution.

Dual-Process Theory

Dual-Process Theory explains how people form impressions about others. People either use systematic processing or category-based processing.

Systematic Processing

Systematic processing means collecting and carefully analyzing information before making a judgment.

It requires time, effort, attention, and motivation.

It usually produces more accurate judgments.

Category-Based Processing

Category-based processing means judging people based on social categories or stereotypes.

It is faster and requires less mental effort.

It is more likely to produce inaccurate judgments.

Cognitive Miser Assumption

People naturally prefer category-based processing because it requires less mental effort.

They use systematic processing only when necessary.

The brain tries to save time and energy.

Motivations that Promote Systematic Processing

1. Defense Motivation

People carefully process information to protect their self-image and personal beliefs when they feel threatened.

2. Impression Motivation

People carefully process information to create a socially acceptable impression or gain approval from others.

Sufficiency Principle

People use systematic processing only when:

They have enough time, energy, and resources.

They are highly motivated to understand the situation accurately.

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If either condition is missing, people rely on stereotypes and category-based processing.

Cognitive Load

Cognitive load refers to the mental pressure placed on a person's thinking ability. Stress, emotions, and competitive conflicts increase cognitive load. High cognitive load makes people depend more on stereotypes.

Avoiding Stereotyping

Do not rely on stereotypes unless absolutely necessary.
Judge people based on actual information rather than assumptions.
Respect the dignity and individuality of every person.

Individual Differences and Social Categories

Social group membership is only one part of a person's identity.
People within the same group differ greatly from one another.
Individual differences are often greater than differences between groups.

Discussing Stereotypes

When appropriate, openly discussing stereotypes can reduce misunderstandings.
It helps build trust and strengthens relationships between different cultural groups.

Independent Self

Independent individuals value personal goals, independence, and individual identity.
They usually remain firm in their principles during negotiations.

Interdependent Self

Interdependent individuals value relationships, social harmony, and group interests.
Their behavior changes according to different social situations and relationships.

Differences During Negotiation

Independent individuals may appear stubborn or insensitive.
Interdependent individuals may appear flexible but can be viewed as inconsistent.
Both approaches reflect different cultural values.

Cultural Differences in Values

Different cultures have different beliefs and priorities.
Some cultures emphasize individual rights.
Others emphasize collective welfare and social harmony.

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Collectivist Culture

Collectivist societies give priority to group interests over personal interests. They value cooperation, harmony, and mediation by respected individuals. Conflict resolution focuses on restoring relationships.

Importance of Understanding Culture

Understanding cultural differences improves communication. It reduces misunderstandings and stereotypes. It supports successful conflict management and negotiation.

Important Exam Points

Dual-Process Theory explains two ways of forming impressions. Systematic processing is careful and accurate but requires time and motivation. Category-based processing depends on stereotypes and requires less effort. The Cognitive Miser Assumption explains why people prefer quick judgments. The Sufficiency Principle states that systematic processing requires both resources and motivation. Cognitive load increases stereotyping during stressful situations. Independent self values individuality, while interdependent self values relationships. Collectivist cultures focus on harmony and group welfare.

Very Important MCQs

1. Dual-Process Theory states that people form impressions through:

- A. Memory and learning
- B. Systematic processing and category-based processing ✓
- C. Motivation and personality
- D. Intelligence and behavior

2. According to the Sufficiency Principle, systematic processing occurs only when people have:

- A. High intelligence only
- B. Enough time/resources and strong motivation ✓
- C. Strong emotions only
- D. Previous experience only

3. Cognitive load is increased by:

- A. Rest and relaxation
- B. Stress and competitive conflict ✓
- C. Friendship
- D. Cooperation

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4. An interdependent self mainly values:

- A. Personal independence only
- B. Social harmony and relationships ✓
- C. Competition only
- D. Individual achievement only

5. Collectivist cultures mainly emphasize:

- A. Individual success over society
- B. Group harmony and collective welfare ✓
- C. Personal freedom only
- D. Competitive conflict resolution

Lesson 30: Mediation (Summarized Notes)

Introduction

Mediation is one of the most important Alternative Dispute Resolution (ADR) methods.

It helps disputants resolve conflicts peacefully without going to court.

A neutral third party assists both sides in reaching a mutually acceptable agreement.

What is Mediation?

Mediation is a type of assisted or facilitated negotiation.

A neutral third party called the mediator helps disputants communicate and negotiate.

The mediator does not impose a decision.

The final agreement is made voluntarily by the disputants.

Purpose of Mediation

To resolve disputes through mutual agreement.

To reduce conflict and improve communication.

To save time, money, and legal expenses.

To preserve relationships between disputants.

Role of the Mediator

The mediator remains impartial toward both parties.

The mediator is neutral regarding the final outcome.

The mediator encourages communication and cooperation.

The mediator helps identify issues and possible solutions.

The mediator has no authority to force a settlement.

Features of Mediation

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It is a voluntary process.
It involves a neutral third party.
Disputants control the final decision.
It focuses on negotiation rather than judgment.
The agreement is based on mutual consent.

When is Mediation Required?

When direct negotiation fails.
When there is a deadlock or impasse in negotiation.
When parties want to avoid lengthy court procedures.
When preserving relationships is important.

Advantages of Mediation

Saves time and legal costs.
Maintains good relationships.
Provides flexible and creative solutions.
Reduces stress and hostility.
Agreements are more likely to be followed because both parties accept them willingly.

Types of Mediation

Facilitative Mediation

The mediator mainly improves communication and negotiation.
The mediator helps parties discover their interests.
The mediator does not evaluate who is right or wrong.
Focus remains on cooperation and problem-solving.

Evaluative Mediation

The mediator evaluates the strengths and weaknesses of each party's position.
The mediator helps narrow differences between disputants.
The mediator may discuss likely court outcomes.
The goal is to encourage realistic settlement.

Difference Between Facilitative and Evaluative Mediation

Facilitative Mediation

Focuses on improving communication.
Does not judge the case.
Encourages cooperative negotiation.

Evaluative Mediation

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Focuses on evaluating legal positions.
Mediator discusses strengths and weaknesses.
Helps parties reach a practical settlement.

Processes Related to Mediation

Settlement Conference

A judge supervises discussions before trial.
The purpose is to encourage settlement and reduce conflict.

Facilitation

A neutral person helps organize complex negotiations involving many parties.

Conciliation

A process closely related to mediation.
Sometimes used as another name for mediation or facilitation.

Results of Mediation

Settlement may be complete or partial.
Settlement may be temporary or permanent.
If parties cannot agree, mediation ends without settlement.
Successful agreements are usually written.

Product of Mediation

The mediator may prepare a Memorandum of Understanding (MOU) or Memorandum of Agreement.
Lawyers may later convert it into a formal legal contract.
Mediated settlements are legally enforceable.

Importance of Mediation

Mediation provides a peaceful alternative to litigation.
It promotes cooperation rather than competition.
It reduces court workload and encourages lasting solutions.

Important Exam Points

Mediation is an assisted negotiation process using a neutral third party.
The mediator facilitates discussion but cannot impose decisions.
The disputants always retain the final decision-making power.
Mediation is used when negotiation fails or reaches an impasse.
Facilitative mediation improves communication without evaluating the case.

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Evaluative mediation assesses the strengths and weaknesses of each side. Settlement conferences, facilitation, and conciliation are processes related to mediation.

The final product of mediation is usually a written Memorandum of Understanding (MOU) or legally enforceable agreement.

Very Important MCQs

1. Mediation is best defined as:

- A. A court trial conducted by a judge
- B. An assisted negotiation using a neutral third party ✓
- C. A criminal investigation
- D. A legal punishment

2. The mediator's main role is to:

- A. Give the final decision
- B. Punish the disputants
- C. Help disputants negotiate and communicate effectively ✓
- D. Act as a judge

3. Which type of mediation avoids evaluating who is right or wrong?

- A. Evaluative mediation
- B. Facilitative mediation ✓
- C. Arbitration
- D. Litigation

4. Mediation is generally used when:

- A. Negotiation succeeds immediately
- B. Negotiation fails or reaches an impasse ✓
- C. Criminal punishment is required
- D. The court gives a final judgment

5. The written outcome of successful mediation is commonly called:

- A. Charge Sheet
- B. Memorandum of Understanding (MOU) ✓
- C. Arrest Warrant
- D. Appeal Notice

Lesson 31: Uses of Mediation Today (Summarized Notes)

Uses of Mediation Today

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Mediation is an ancient method of conflict resolution used worldwide.

It has long been practiced in Pakistan in social and business matters.

In the USA, mediation became a mainstream legal process during the 1990s.

The number of mediators has increased, making mediation more common but sometimes more adversarial.

Mediation is widely used because it saves time, money, and helps preserve relationships.

Areas Where Mediation is Used

Labor and employment disputes.

State and federal civil litigation.

Divorce and child custody cases.

Special education disputes.

Neighborhood conflicts.

International disputes.

Consumer complaints.

School conflicts through peer mediation.

Forms of Mediation

Different forms of mediation are used depending on the type of conflict.

Important Distinguishing Factors

Facilitative or evaluative process.

Narrow dispute or whole relationship.

Level of pressure to settle.

1. Triage Mediation

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Used mainly in courts to reduce case backlog.

Goal is quick and inexpensive settlement.

Focus is narrow and highly evaluative.

Advantages

Cheap.

Fast.

Reduces court workload.

Disadvantages

Poorly trained mediators.

Heavy caseloads.

Can be coercive.

Less attention to disputants' real needs.

Low psychological ownership of settlement.

2. Bargaining-Based Mediation

Most common form of mediation.

Focuses on compromise and fair settlement.

Usually evaluative.

Uses separate meetings called caucuses.

Caucus

Private meeting between mediator and one disputant without the other party.

Advantages

Good for complex legal issues.

Useful where facts or law are disputed.

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Saves time.

Familiar to lawyers.

Disadvantages

Encourages positional bargaining.

May increase conflict.

Limited creativity.

Low psychological ownership.

Requires expert mediators.

3. Therapeutic Mediation

Improves the relationship so conflicts can be resolved.

Broad and facilitative process.

Helpful in emotional or mental health conflicts.

Advantages

Improves long-term relationships.

Useful for former partners.

Helps disputants with mental health issues.

Disadvantages

Mediator's role must be clearly defined.

Role confusion may occur.

4. Pure Mediation

Promotes collaborative and principled negotiation.

Goal is cooperation rather than simply reaching agreement.

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Highly facilitative and non-coercive.

Advantages

Creates win-win solutions.

Preserves relationships.

Increases psychological ownership.

Clarifies issues.

Makes future conflict resolution easier.

Disadvantages

More time-consuming.

Not suitable for all disputants.

Some lawyers prefer evaluative methods.

Requires skilled mediators.

5. Transformative Mediation

Focuses on empowerment and recognition.

Encourages understanding between disputants.

Broad and facilitative.

Advantages

Strong psychological ownership.

Improves communication.

May positively transform relationships.

Disadvantages

Settlement is not the primary goal.

Some disputants dislike this approach.

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Research evidence is still limited.

Legal Assistants and Paralegals

Assist lawyers in mediation.

Help prepare cases and BATNA analysis.

Maintain mediator records.

Attend mediation sessions.

May act as mediators where permitted.

Summary

Mediation is an effective alternative to litigation.

There are five main forms of mediation.

Each form has different goals, advantages, and limitations.

The appropriate form depends on the nature of the conflict and the disputants.

Important Exam Points

Mediation became popular in the USA during the **1990s**.

Five forms of mediation: Triage, Bargaining-Based, Therapeutic, Pure, and Transformative.

Caucus: Private meeting between the mediator and one disputant.

Pure mediation promotes collaboration and win-win solutions.

Transformative mediation focuses on empowerment and recognition.

5 Important MCQs

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

1. Which form of mediation aims to quickly remove cases from the court system?

- A) Pure Mediation
- B) Therapeutic Mediation
- C) **Triage Mediation** ✓
- D) Transformative Mediation

2. A private meeting between the mediator and one disputant is called:

- A) Arbitration
- B) Litigation
- C) Negotiation
- D) **Caucus** ✓

3. Which mediation focuses on collaboration and principled negotiation?

- A) Triage Mediation
- B) Bargaining-Based Mediation
- C) **Pure Mediation** ✓
- D) Therapeutic Mediation

4. Transformative mediation mainly focuses on:

- A) Court judgment
- B) Financial settlement only
- C) **Empowerment and recognition** ✓
- D) Punishment

5. Which mediation is especially useful for highly complex legal disputes?

- A) Therapeutic Mediation
- B) **Bargaining-Based Mediation** ✓
- C) Pure Mediation
- D) Transformative Mediation

Lesson 32: Advantages and Disadvantages of Mediation I (Summarized Notes)

Negotiation

Negotiation is a direct discussion or dialogue between disputants.

It is a form of Alternative Dispute Resolution (ADR).

Its purpose is to resolve disputes, reach agreements, and satisfy the interests of all parties.

Three Basic Elements of Negotiation

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Process

How the negotiation takes place.

Includes context, parties, tactics, stages, and sequence.

Behavior

Refers to relationships, communication, and negotiation styles.

Substance

Refers to issues, interests, options, and the final agreement.

Arbitration

Arbitration is the referral of a dispute to an impartial person called an arbitrator.

The arbitrator makes a decision based on evidence and arguments.

It is used instead of court proceedings.

Sometimes arbitration is compulsory by law, especially in labor disputes.

Adjudication

Adjudication is resolving disputes through a court of law.

Cases may be civil or criminal.

An impartial judge or jury decides the case after hearing evidence and arguments.

Litigation

Litigation is a lawsuit brought before a court.

The plaintiff files the case against the defendant.

If successful, the court may award damages, issue orders, or grant injunctions.

Litigation is formal, expensive, and time-consuming.

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Efficiency Consideration

The ADR movement began mainly to reduce the cost and delay of litigation.

Mediation is generally cheaper and faster than litigation.

It avoids lengthy court procedures such as discovery, hearings, motions, and strict rules of evidence.

Arbitration may be quick and inexpensive or may become as costly as litigation.

Principled bargaining makes mediation more efficient than positional bargaining in the long run.

Conflict Management and Prevention

Mediation is highly effective in preventing and reducing conflict.

It promotes cooperation instead of competition.

It reduces conflict escalation.

It builds trust and preserves relationships.

It increases the chances of successful settlement.

Even if mediation fails, it makes future dispute resolution easier.

Summary

Negotiation, arbitration, adjudication, and litigation are different methods of dispute resolution.

Mediation is generally faster, cheaper, and more relationship-oriented than litigation.

It helps reduce conflict, promotes cooperation, and preserves long-term relationships.

As society becomes more self-interest based, the need for formal mediation systems is expected to increase.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Important Exam Points

Negotiation has **three basic elements**: Process, Behavior, and Substance.

Arbitration uses an **impartial arbitrator** to decide disputes.

Adjudication is the **court-based settlement** of disputes.

Litigation is **formal, costly, and time-consuming**.

Mediation is generally **cheaper, faster, and more effective** than litigation.

Mediation promotes **cooperation, trust, and conflict prevention**.

5 Important MCQs

1. Which ADR method involves direct discussion between disputants?

- A) Arbitration
- B) Litigation
- C) **Negotiation** ✓
- D) Adjudication

2. Which of the following is NOT one of the three basic elements of negotiation?

- A) Process
- B) Behavior
- C) Substance
- D) **Punishment** ✓

3. In arbitration, the dispute is decided by a:

- A) Lawyer
- B) Judge
- C) Mediator
- D) **Arbitrator** ✓

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

4. Which dispute resolution method is generally the most expensive and time-consuming?

- A) Negotiation
- B) Mediation
- C) **Litigation** ✓
- D) Arbitration

5. One major advantage of mediation is that it:

- A) Increases conflict
- B) Guarantees court judgment
- C) **Builds trust and preserves relationships** ✓
- D) Eliminates negotiation completely

Lesson 33: Advantages and Disadvantages of Mediation II (Summarized Notes)

Advantages and Disadvantages of Mediation

The effectiveness of mediation depends on several important factors.

These include quality of consent, relationship preservation, conflict management, outcome flexibility, and comparison with other ADR methods.

Quality of Consent

Quality of consent refers to how willingly and knowingly disputants accept the mediation process and its outcome.

The consent should be voluntary and well-informed.

Seven Quality of Consent Attributes

Explicit identification of disputants' goals and interests.

Identification of possible options to satisfy those interests.

Disputants generate their own solutions.

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Careful consideration of available options.

Mediator avoids pressuring disputants toward a particular outcome.

Mediator limits the use of time pressure.

Mediator confirms that both parties freely agree to the final decision.

Effect of Quality of Consent

Disputants psychologically own the agreement.

The settlement becomes more durable.

If problems arise later, disputants are more likely to resolve them constructively.

Relationship Preservation

Mediation is the best dispute resolution method for preserving relationships.

It is especially useful where disputants must continue interacting after the conflict.

Examples

Divorcing parents.

Neighbors.

Corporate shareholders.

Landlords and tenants.

Parent-teacher disputes.

Conflict Management and Prevention

Mediators first diagnose the conflict before helping disputants.

Facilitative mediators focus on identifying the real interests of both parties.

Effects

Avoids negotiation deadlocks.

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Keeps parties focused on solving the problem.

Produces creative and practical solutions.

Provides complete resolution of disputes.

Allows flexible handling of the entire conflict.

Improves mediator understanding of disputants' interests.

Results in more effective outcomes.

Effects of Mediation When No Settlement is Reached

Clarifies and narrows the issues.

Promotes cooperative behavior.

Improves knowledge and expert power of both parties.

Increases understanding of BATNA.

Encourages discussion of unresolved issues.

Effects on the Parties

Teaches negotiation and dispute resolution skills.

Improves conflict diagnosis abilities.

May strengthen long-term relationships.

Effect on Society

Greater use of mediation may improve society's overall approach to conflict resolution.

It encourages cooperation instead of confrontation.

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Comparison of Litigation, Arbitration and Mediation

Litigation

Formal process.

Strict rules of evidence.

Formal discovery process.

Public hearings.

Judge or jury makes the decision.

Judgment may be appealed.

Expensive and time-consuming.

Arbitration

Less formal process.

Relaxed rules of evidence.

Limited discovery.

Private hearings.

Arbitrator makes the decision.

Decision is usually binding with limited appeal.

Usually quicker and cheaper than litigation.

Mediation

Least formal process.

Rules of evidence do not apply.

Informal fact-finding.

Private and confidential.

Disputants make their own decisions.

Settlement becomes an enforceable contract.

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Quicker, cheaper, and less stressful than litigation.

Summary

Quality of consent is one of the most important reasons for successful mediation.

Mediation preserves relationships, promotes cooperation, and produces durable agreements.

Although informal mediation is common in Pakistan, formal mediation is expected to become increasingly important.

Important Exam Points

Quality of consent means disputants freely and knowingly accept the mediation process and outcome.

There are **seven quality of consent attributes**.

Mediation is the **best ADR method for preserving relationships**.

BATNA knowledge improves when mediation is used.

Mediation is **private, confidential, quicker, cheaper, and less stressful** than litigation.

Litigation is formal, while mediation is the least formal dispute resolution process.

5 Important MCQs

1. Quality of consent means that disputants:

- A) Are forced to settle
- B) **Freely and knowingly agree to the process and outcome** ✓
- C) Accept only the mediator's opinion
- D) Must go to court

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2. Which ADR method is considered the best for preserving long-term relationships?

- A) Litigation
- B) Arbitration
- C) **Mediation** ✓
- D) Adjudication

3. If mediation does not result in settlement, it still helps by:

- A) Increasing hostility
- B) Ending communication
- C) **Clarifying and narrowing the issues** ✓
- D) Forcing arbitration

4. In mediation, who makes the final decision?

- A) Judge
- B) Arbitrator
- C) Mediator
- D) **The disputing parties** ✓

5. Which dispute resolution process is the least formal?

- A) Litigation
- B) Arbitration
- C) Adjudication
- D) **Mediation** ✓

Lesson 34: Mediation Process (Summarized Notes)

Introduction

Gender equality has increased gender-based conflicts.

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Understanding gender conflict and its resolution is becoming more important.

Mediation is one of the most effective methods of conflict resolution.

This lesson explains formal mediation and the stages of mediation.

Mediation

A mediation session usually lasts **1–2 hours**.

Several **caucus sessions** may be followed by **joint sessions** to finalize agreements.

Family disputes usually involve fewer caucus sessions because trust-building is more important.

Stages of Mediation

There are **six stages of mediation**.

Initial Client Contact

Introductory Stage

Issues Clarification and Communication

Productive Stage

Agreement Consummation

Debriefing and Referral

1. Initial Client Contact

Mediation begins when one or both disputants contact the mediator.

The mediator explains mediation services and provides information about the process.

Sometimes only one disputant contacts the mediator first.

Trust is essential because disputants are often hostile toward each other.

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The mediator avoids actions that may create suspicion or violate privacy.

2. Introductory Stage

The mediator introduces the mediation process.

Ground rules and confidentiality are explained.

Participants sign necessary agreements.

The mediator creates a comfortable environment.

The mediator changes the atmosphere from competition to cooperation.

Clients are encouraged to solve the problem together instead of blaming each other.

3. Issues Clarification and Communication

The mediator helps disputants explain their concerns.

Evaluative mediators focus on positions and expectations.

Facilitative mediators focus on interests, needs, values, and principles.

Active listening is used to improve communication.

The mediator organizes important issues that must be resolved.

4. Productive Stage

This is the stage where solutions are developed.

Evaluative mediators point out strengths and weaknesses of each case.

Facilitative mediators encourage brainstorming of possible solutions.

Any agreement reached is written in a memorandum or formal contract.

5. Agreement Consummation

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The final agreement is completed.

The agreement may be signed during or after mediation.

The settlement becomes formal when accepted by both disputants.

6. Debriefing and Referral

The mediator reviews the agreement with the disputants.

Remaining issues are discussed.

If necessary, mediation can return to earlier stages.

The mediation process is flexible and not always linear.

What Do Mediators Do?

Mediation is both an art and a science.

Different mediators may use different techniques.

Facilitative Tactics in Mediation

Educating

The mediator explains the mediation process and helps disputants understand their options.

Improving Communication

The mediator encourages effective communication.

Builds trust.

Improves understanding.

Supports interest analysis.

Helps diagnose conflict.

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Handling Emotions

The mediator manages anger and emotional reactions.

Uses active listening.

Avoids personal attacks and name-calling.

Encourages positive communication.

Maintaining Disputant Motivation

The mediator keeps disputants motivated throughout mediation.

Encourages cooperation despite the difficulties of conflict.

Evaluative Tactics in Mediation

Instilling doubt.

Case evaluation tactics.

Caucusing.

Summary

Mediation follows six flexible stages.

Facilitative mediation promotes cooperation and communication.

Evaluative mediation focuses on assessing the strengths and weaknesses of each case.

Understanding mediation stages and tactics helps people become effective mediators and informed disputants.

Important Exam Points

Six stages of mediation are Initial Client Contact, Introductory Stage, Issues Clarification, Productive Stage, Agreement Consummation, and Debriefing.

Mediation sessions usually last **1–2 hours**.

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Facilitative mediators focus on interests, needs, values, and communication.

Evaluative mediators focus on positions, case evaluation, and caucusing.

Active listening is one of the most important mediation skills.

The mediation process is flexible and not always linear.

5 Important MCQs

1. How many stages are there in the mediation process?

- A) 4
- B) 5
- C) 6 ✓
- D) 7

2. Which stage focuses on brainstorming possible solutions?

- A) Initial Client Contact
- B) Introductory Stage
- C) **Productive Stage** ✓
- D) Debriefing

3. Which skill is most important for improving communication during mediation?

- A) Arguing
- B) Threatening
- C) **Active Listening** ✓
- D) Criticizing

4. Which tactic is mainly used by evaluative mediators?

- A) Educating
- B) Maintaining Motivation

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C) Case Evaluation ✓

D) Relationship Building

5. The mediation process is best described as:

A) Fixed and rigid

B) Court-controlled

C) Flexible and non-linear ✓

D) Limited to one meeting

Lesson 35: Law and Ethics of Mediation I (Summarized Notes)

Introduction

Law and ethics are important for effective mediation.

Mediation is regulated to preserve its purpose and protect the rights of all participants.

Mediation combines legal and psychological principles.

Why is Mediation Regulated?

Mediation is regulated to preserve the essence of mediation.

It ensures the effectiveness of mediation.

It protects the legal rights of participants.

As mediation becomes more common, legal regulation becomes increasingly important.

Preserving the Essence of Mediation

A mediator must act as a neutral third party.

Disputants should make their own decisions through self-determination.

Mediation should remain a non-adversarial process.

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The process should be fair, impartial, and based on informed consent.

Confidentiality must be maintained.

Truthful advertising and ethical conduct are expected from mediators.

Characteristics of Mediation

A third-party mediator is involved.

Disputants retain self-determination.

The mediator acts as an intermediary.

There is limited regulation of mediator advertising.

Self-determination is the fundamental principle of mediation.

The mediator participates impartially and neutrally.

Clients must give informed consent.

Mediation should be distinguished from other evaluative ADR methods.

Confidentiality is a key feature of mediation.

Ensuring the Effectiveness of Mediation

Confidentiality is essential for successful mediation.

Mediator competence and professional conduct improve effectiveness.

Short-term goals usually support evaluative mediation.

Long-term goals usually support facilitative mediation.

Settlement agreements should be enforceable.

Good-faith participation is encouraged.

Competent mediators increase successful outcomes.

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Protecting Other Legal Rights

Mediation should protect the legal rights of all participants.

It must balance mediation with other legal obligations.

Three important considerations are due process, safety, and conflict with other rights.

Due Process Considerations

Coercion should be avoided.

Participation should be based on informed consent.

Confidentiality may be lifted when necessary to protect legal rights.

Safety Issues

Special care is required in cases involving abuse or violence.

Participant safety should always be protected.

Conflict with Other Rights

Government mediation may be affected by laws requiring public access.

Confidentiality must sometimes give way to other legal requirements.

Legal Issues in Mediation

Confidentiality

Mediation is generally confidential.

Information shared during mediation cannot normally be used in court.

Confidentiality encourages honest communication.

It also protects the neutrality of the mediator.

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Waiver of Confidentiality

Confidentiality may be waived in certain situations.

Consent of the participants.

Mediator malpractice or misconduct claims.

Protection of the mediation process.

Information that was already public.

Evidence of crime or child abuse.

Administration of justice.

Conflict with another law.

Summary

Mediation operates within legal and ethical boundaries.

Regulation preserves the effectiveness and fairness of mediation.

Confidentiality, neutrality, informed consent, and self-determination are essential principles.

Mediation should always protect both justice and the legal rights of participants.

Important Exam Points

Mediation is regulated to preserve its essence, ensure effectiveness, and protect legal rights.

Self-determination is the fundamental principle of mediation.

Confidentiality is one of the most important legal principles in mediation.

A mediator must remain impartial and neutral.

Confidentiality can be waived under specific legal circumstances.

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Informed consent is essential before mediation begins.

5 Important MCQs

1. What is the fundamental principle of mediation?

- A) Arbitration
- B) Litigation
- C) **Self-determination** ✓
- D) Punishment

2. Why is mediation generally kept confidential?

- A) To delay court cases
- B) To increase legal costs
- C) **To encourage honest communication** ✓
- D) To avoid written agreements

3. Which of the following is NOT a reason for regulating mediation?

- A) Preserve the essence of mediation
- B) Ensure effectiveness
- C) Protect legal rights
- D) **Increase court litigation** ✓

4. Which quality should every mediator maintain?

- A) Bias
- B) Authority
- C) **Impartiality and neutrality** ✓
- D) Competition

5. Confidentiality in mediation may be waived when:

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- A) Parties agree to it
- B) There is evidence of a crime
- C) It conflicts with another law
- D) **All of the above** ✓

Lesson 36: Law and Ethics of Mediation II (Summarized Notes)

Introduction

Ethics play an important role in mediation.

Law regulates mediation, but ethics guide the mediator's behavior.

Mediation is a flexible, non-adversarial method of dispute resolution.

It operates within both ethical principles and legal rules.

Ethics in Mediation

Ethics are the foundation on which mediation is based.

Ethics may change with time, place, and society.

A good action is one that maximizes benefit for everyone.

Mediators should be creative and adapt the process to the needs of the disputants.

Mediation is voluntary and aims to achieve a mutually beneficial agreement.

The mediator improves communication, understanding, and problem-solving between disputants.

Role of Ethics in Mediation

Ethical beliefs influence negotiation and mediation.

Values affect the way disputants perceive and resolve conflict.

Mediators must respect the values and rights of all parties.

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Every disputant has the right to negotiate voluntarily.

Mediation is NOT

Mediation is not toothless.

It is not merely a compromise.

It is not a substitute for arbitration or litigation.

It is not something lawyers or managers automatically do.

It is not a waste of time if settlement is not reached.

It is not simply another unnecessary cost.

It is not a sign of weakness.

It is not only a way to avoid court.

It does not require revealing everything.

It is not a risky process.

It is not a form of counseling.

Why is Mediation Regulated?

To preserve the essence of mediation.

To ensure the effectiveness of mediation.

To protect the legal rights of all participants.

Regulation also promotes public confidence in mediation.

Ethical standards guide mediators and inform disputants about the mediation process.

Eight Dimensions of Ethics in Mediation

1. Self-Determination

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Parties make their own voluntary decisions.

No one should be forced into an agreement.

Any party may withdraw from mediation at any time.

2. Impartiality

The mediator must remain neutral and fair.

If impartiality cannot be maintained, the mediator should withdraw.

Personal bias or prejudice must be avoided.

3. Conflicts of Interest

The mediator must disclose any actual or potential conflict of interest.

The mediator should continue only if all parties agree.

Professional relationships that create bias should be avoided.

Outside pressure must never influence mediation.

4. Competence

The mediator should have proper education, training, and experience.

The mediator should possess professional knowledge and ethical understanding.

5. Confidentiality

Information shared during mediation should remain confidential.

Confidential information can only be disclosed with permission or when required by law.

Private caucus discussions should also remain confidential.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

The mediator should not discuss settlement offers or participant behavior outside mediation.

6. Quality of the Process

The mediator should conduct mediation fairly and diligently.

Every participant should have an equal opportunity to participate.

The parties decide whether to settle or end mediation.

7. Advertising and Solicitation

The mediator must advertise truthfully.

Qualifications and experience should be presented honestly.

No guarantees of successful results should be made.

8. Fees

The mediator must clearly explain all fees before mediation begins.

Fees should not depend on the outcome of mediation.

The mediator should not accept referral commissions.

Summary

Ethics and law work together to make mediation fair and effective.

The eight ethical principles guide mediator conduct and protect disputants.

Following ethical standards strengthens public trust in mediation and promotes successful conflict resolution.

Important Exam Points

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HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Ethics are the foundation of effective mediation.

Mediation is voluntary, flexible, and non-adversarial.

There are eight dimensions of ethics in mediation.

Self-determination means parties voluntarily make their own decisions.

Impartiality requires mediators to remain neutral.

Confidentiality protects information shared during mediation.

Mediators must disclose conflicts of interest.

Mediator fees should never depend on the settlement outcome.

5 Important MCQs

1. Which principle allows parties to make their own voluntary decisions during mediation?

- A) Confidentiality
- B) Competence
- C) **Self-Determination** ✓
- D) Impartiality

2. If a mediator cannot remain neutral, the mediator should:

- A) Continue mediation
- B) Ignore the bias
- C) **Withdraw from the mediation** ✓
- D) Ask the court to decide

3. Which ethical principle protects information shared during mediation?

- A) Competence
- B) Fees

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

C) Confidentiality ✓

D) Advertising

4. A mediator should disclose any actual or potential:

A) Agreement

B) Settlement

C) Conflict of Interest ✓

D) Negotiation

5. According to mediation ethics, mediator fees should be:

A) Based on the settlement amount

B) Paid only after winning

C) Clearly explained in advance and not linked to the outcome ✓

D) Decided after mediation ends

Lesson 37: Arbitration I (Summarized Notes)

Introduction

Arbitration is an important method of Alternative Dispute Resolution (ADR).

It closely resembles litigation but is generally faster and more flexible.

This lesson explains arbitration, its advantages, disadvantages, and the Arbitration Act in Pakistan.

Ways to Resolve Conflict

Negotiation.

Mediation and Conciliation.

Adjudication.

Arbitration.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Litigation.

Avoidance.

Violence.

Arbitration

Arbitration is a legal process in which a neutral third party, called an arbitrator, hears a dispute.

The arbitrator gives a decision known as an arbitration award.

The arbitration award is usually final and legally binding.

It has a legal status similar to a court judgment.

Arbitration Award

The binding decision issued by an arbitrator is called an arbitration award.

It is enforceable and can only be challenged in exceptional circumstances.

Advantages of Arbitration

Flexible proceedings.

Confidential process.

Quick resolution of disputes.

Lower cost compared to litigation.

Legally binding decisions.

International enforceability.

Expert arbitrators with specialized knowledge.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Disadvantages of Arbitration

Arbitrators have limited legal powers.

Multi-party disputes are difficult to combine before one tribunal.

Arbitrators may lack expertise in complex legal issues.

The doctrine of precedent does not apply.

Each case is decided on its own merits.

Previous decisions are not binding on future cases.

Arbitration Act in Pakistan

The law of arbitration in Pakistan is governed by the **Arbitration Act, 1940**.

The Act provides three types of arbitration.

1. Arbitration without Court Intervention

Conducted independently without court involvement.

Covered under Chapter II (Sections 3–19).

2. Arbitration through Court (No Suit Pending)

Court assists arbitration even when no lawsuit has been filed.

Covered under Chapter III (Section 20).

3. Arbitration in Suits

Used when a lawsuit is already pending before the court.

Covered under Chapter IV (Sections 21–25).

The Act also contains provisions common to all three types of arbitration.

Summary

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Arbitration is an ADR process that provides a faster and more flexible alternative to litigation.

The arbitrator's decision is generally final and binding.

Unlike litigation, arbitration does not follow the doctrine of precedent.

Pakistan regulates arbitration through the **Arbitration Act, 1940**.

Important Exam Points

Arbitration is a legal ADR process conducted by a neutral arbitrator.

The arbitrator's decision is called an arbitration award.

Arbitration awards are generally final and legally binding.

Major advantages include speed, confidentiality, flexibility, lower cost, and expert arbitrators.

The doctrine of precedent does not apply in arbitration.

Pakistan's arbitration law is governed by the **Arbitration Act, 1940**.

There are three types of arbitration under the Arbitration Act, 1940.

5 Important MCQs

1. The binding decision given by an arbitrator is called:

- A) Judgment
- B) Decree
- C) **Arbitration Award** ✓
- D) Settlement

2. Which of the following is an advantage of arbitration?

- A) Public hearings
- B) **Confidentiality** ✓

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

C) Unlimited appeals

D) Doctrine of precedent

3. Which doctrine does NOT apply in arbitration?

A) Natural Justice

B) Due Process

C) **Doctrine of Precedent** ✓

D) Evidence

4. Which law governs arbitration in Pakistan?

A) Civil Procedure Code

B) Contract Act

C) **Arbitration Act, 1940** ✓

D) Evidence Act

5. How many types of arbitration are provided under the Arbitration Act, 1940?

A) Two

B) **Three** ✓

C) Four

D) Five

Lesson 38: Arbitration II (Summarized Notes)

Arbitration

Arbitration is one of the main forms of Alternative Dispute Resolution (ADR).

A neutral third party (arbitrator) hears the dispute and gives a binding decision called an arbitration award.

Arbitration awards are generally final and can only be challenged in exceptional circumstances.

The Local Government Ordinance 2001 also contains provisions relating to ADR.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Arbitration Award

An arbitration award is the final binding decision issued by the arbitrator.

It has a legal status similar to a court judgment.

Executory Agreements to Arbitrate

An executory agreement is an agreement made before any dispute arises.

The parties agree in advance that future disputes will be settled through arbitration.

De Novo

De novo is a Latin term meaning "a new."

It refers to a completely new trial where both legal and factual issues are reconsidered.

Unlike an appeal, a de novo trial allows the entire case to be heard again.

Varieties of Arbitration

Informal Arbitration

Uses fewer legal procedures.

Has minimal discovery and relaxed rules of evidence.

The arbitrator may also use facilitative techniques.

Executory Arbitration

Agreement to arbitrate is made before the dispute occurs.

Interest Arbitration

Used mainly in labor disputes.

Determines the terms of collective bargaining agreements.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Private Arbitration

Conducted outside government institutions.

Used between private individuals or organizations.

High-Low Arbitration

The arbitrator's decision must remain within a pre-agreed range.

Limits the possible outcome.

Binding Arbitration

The arbitrator's decision is final and binding on all parties.

Other Forms of Arbitration

Executory Arbitration

Based on a pre-existing arbitration agreement.

Ad-Hoc Arbitration

Agreed upon after a dispute has already arisen.

Administered Arbitration

Conducted under the supervision of an arbitration institution.

Non-Administered Arbitration

Managed directly by the disputing parties without institutional involvement.

Rights Arbitration

Resolves disputes involving the interpretation or application of existing agreements.

Comparison of Litigation, Arbitration and Mediation

Litigation

Formal process.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Strict rules of evidence.

Formal discovery.

Public proceedings.

Judge or jury decides.

Decision may be appealed.

Most expensive and time-consuming.

Arbitration

Less formal than litigation.

Relaxed rules of evidence.

Limited discovery.

Private hearings.

Arbitrator decides.

Decision is usually binding.

Faster and cheaper than litigation.

Mediation

Least formal process.

No formal rules of evidence.

Informal fact-finding.

Private and confidential.

Parties make their own decisions.

Settlement is voluntary.

Fastest, least costly, and least stressful.

Process of Arbitration

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Arbitration generally follows eight basic steps.

1. Creating the Arbitration Contract

The parties prepare an arbitration agreement before or after a dispute arises.

2. Demanding or Choosing Arbitration

One or both parties request arbitration according to the agreement.

3. Selecting the Arbitrator

A single arbitrator or a panel of arbitrators is chosen.

4. Selecting Procedural Rules

The parties decide which procedural rules will govern the arbitration.

5. Preparing for Arbitration

Documents, evidence, and witnesses are prepared.

6. Arbitration Hearing

Both parties present their evidence and arguments before the arbitrator.

7. Arbitration Award

The arbitrator issues the final decision.

8. Enforcement of Award

The final award is enforced according to the applicable law.

Creating the Arbitration Contract

The arbitration contract is the foundation of the entire arbitration process.

It should be fair, clear, and comprehensive.

It may be executory or ad-hoc.

Important Contents of an Arbitration Contract

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Matters to be arbitrated should be clearly defined.

Expenses should be shared fairly.

Method of selecting arbitrators should be specified.

Rules regarding discovery should be mentioned.

Schedule and duration of hearings should be determined.

Privacy and confidentiality should be ensured.

Roles of arbitrators should be clearly explained.

Rules of evidence should be agreed upon.

Submission of documents should follow a schedule.

Nature of the arbitration award should be specified.

Review and enforcement procedures should be included.

Choice of law should be clearly mentioned.

Temporary remedies may be provided.

A mediation clause may be included before arbitration.

Law of Arbitration

Arbitration may sometimes face legal challenges.

Some parties may attempt to avoid arbitration or reject its outcome.

Therefore, legal rules ensure fairness and enforceability.

Before Arbitration

The enforceability of the arbitration agreement is examined.

Arbitrability determines whether the dispute falls within the agreement.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

After Arbitration

The arbitration award is enforced.

The award may be reviewed only in limited situations.

Choice of law is applied where necessary.

Legal rules determine enforceability and reviewability.

Summary

Arbitration depends greatly on a well-drafted arbitration contract.

A clear agreement improves fairness, acceptance, and enforcement of the award.

Proper arbitration procedures help resolve disputes efficiently while avoiding lengthy court litigation.

Important Exam Points

Arbitration is a legal ADR process in which a neutral arbitrator gives a binding decision.

An arbitration award has legal status similar to a court judgment.

Executory arbitration agreement is made before a dispute arises.

Ad-hoc arbitration agreement is made after a dispute arises.

Binding arbitration results in a final and enforceable decision.

The arbitration process consists of eight basic steps.

A clear arbitration contract improves enforceability and implementation.

Enforceability means the arbitration agreement is legally valid.

Arbitrability determines whether a dispute falls under the arbitration agreement.

Choice of law is important in interstate and international arbitration.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

5 Important MCQs

1. What is the final binding decision of an arbitrator called?

- A) Mediation Agreement
 - B) Court Order
 - C) **Arbitration Award** ✓
 - D) Settlement Contract
-

2. An executory arbitration agreement is made:

- A) After court proceedings
 - B) **Before a dispute arises** ✓
 - C) After the award
 - D) During litigation
-

3. Which ADR method usually results in a binding decision by a neutral third party?

- A) Negotiation
 - B) Mediation
 - C) **Arbitration** ✓
 - D) Conciliation
-

4. How many basic steps are generally involved in the arbitration process?

- A) Five
- B) Six
- C) Seven

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

D) Eight ✓

5. Arbitrability refers to:

- A) Sharing arbitration expenses
- B) Choosing an arbitrator
- C) **Whether a dispute is covered by the arbitration agreement** ✓
- D) Enforcing the arbitration award

Lesson 39: Non-Binding Evaluation (Summarized Notes)

Non-Binding Evaluation

Non-binding evaluation is an Alternative Dispute Resolution (ADR) process used mainly in legal disputes.

It evaluates the likely outcome of a case if it goes to court.

It is also known as a mixed or hybrid form of ADR because it combines features of negotiation and adjudication.

It is considered a form of assisted negotiation.

The process includes a hearing followed by an advisory evaluation.

The evaluation identifies the strengths and weaknesses of both disputants.

Lawyers with an adversarial approach often prefer non-binding evaluation.

Disadvantages of Non-Binding Evaluation

Encourages an adversarial approach without giving a final decision.

The complexity and formality of the process may vary.

Evidence and testimony procedures differ from case to case.

The outcome may be a single recommendation or a range of possible decisions.

Mainly serves as a BATNA clarification rather than a final settlement.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Varieties of Non-Binding Evaluation

There are five common forms of non-binding evaluation.

1. Non-Binding Arbitration

An arbitrator, retired judge, attorney, or ADR neutral hears oral arguments.

Evidence and informal testimony may also be presented.

The outcome is an advisory arbitration award.

Useful for general BATNA clarification.

2. Mini-Trial

Senior corporate executives with settlement authority participate.

A neutral moderator may also be involved.

Oral arguments and limited evidence are presented.

Usually no formal decision is issued.

Helps parties understand their BATNA and negotiate settlement.

3. Summary Jury Trial

A jury panel hears an abbreviated version of the case.

A judge or retired judge acts as moderator.

The jury gives a non-binding verdict.

Useful for resolving complex factual disputes.

Provides a realistic preview of a possible jury decision.

Helps clarify BATNA before an actual trial.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

4. Neutral Evaluation

An expert or experienced lawyer evaluates the dispute.

Oral arguments are presented.

The evaluator identifies the strengths and weaknesses of each side.

An advisory opinion may be issued.

Useful for BATNA clarification and expert guidance.

5. Dispute Review Board

A panel of technical experts supervises large construction projects.

The board reviews disputes that may delay project completion.

An advisory decision is issued.

Useful for avoiding costly delays and resolving disputes during construction.

Summary

Non-binding evaluation helps disputants understand the likely outcome of their case without going to court.

It combines elements of negotiation and adjudication.

Although its decisions are advisory only, it improves BATNA understanding and encourages informed settlements.

Different forms of non-binding evaluation are suitable for different types of legal and commercial disputes.

Important Exam Points

Non-binding evaluation is a hybrid form of ADR.

It evaluates the likely court outcome but does not give a binding decision.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

It is also called assisted negotiation.

Its main purpose is BATNA clarification.

The five forms are Non-Binding Arbitration, Mini-Trial, Summary Jury Trial, Neutral Evaluation, and Dispute Review Board.

Summary Jury Trial provides a non-binding jury verdict.

Neutral Evaluation is conducted by subject experts or experienced lawyers.

Dispute Review Boards are commonly used in large construction projects.

5 Important MCQs

1. Non-binding evaluation is also known as:

- A) Litigation
- B) Mediation
- C) **Hybrid form of ADR ✓**
- D) Conciliation

2. The main purpose of non-binding evaluation is:

- A) Giving a final court judgment
- B) Punishing the disputants
- C) **Clarifying BATNA ✓**
- D) Enforcing contracts

3. Which process provides a non-binding verdict through a jury panel?

- A) Mini-Trial
- B) Neutral Evaluation

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

C) **Summary Jury Trial** ✓

D) Mediation

4. Who usually conducts a Neutral Evaluation?

A) Police officer

B) Community elder

C) **Expert or experienced lawyer** ✓

D) Jury members

5. Dispute Review Boards are mainly used in:

A) Divorce cases

B) Criminal cases

C) Consumer complaints

D) **Large construction projects** ✓

Lesson 40: Non-Binding Evaluation II (Summarized Notes)

Non-Binding Evaluation

Non-binding evaluation is an Alternative Dispute Resolution (ADR) process that helps disputants understand the likely outcome of litigation.

It provides both parties with a preview of what may happen if the case goes to court.

Its purpose is to reduce differences between the parties and encourage settlement.

It combines features of negotiation and adjudication.

Varieties of Non-Binding Evaluation

There are five main forms of non-binding evaluation.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

1. Non-Binding Arbitration

The simplest form of non-binding evaluation.

An arbitrator hears the dispute and gives an advisory decision.

The decision is not legally binding.

It may be voluntarily chosen by the parties or ordered by the court.

2. Mini-Trial

Uses a summary presentation of the dispute instead of a full trial.

Representatives with authority to settle attend the hearing.

The neutral discusses the strengths and weaknesses of both sides or gives an advisory opinion.

It reduces the time and cost of litigation.

3. Summary Jury Trial

An abbreviated version of the case is presented before a jury.

The jury gives a non-binding verdict.

It helps parties predict how a real jury may decide the case.

It encourages settlement before an actual trial.

4. Neutral Evaluation

A legal or technical expert evaluates the strengths and weaknesses of both parties.

The evaluator provides an advisory assessment.

Useful in disputes involving complex legal or technical issues.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

5. Dispute Review Board

Created by contract for large construction projects.

Usually consists of three experts selected by the owner and contractor.

Disputes are heard informally during the project.

The board issues an advisory decision.

Helps avoid delays and keeps construction work moving.

Advantages and Disadvantages of Non-Binding Evaluation

Compared with Litigation

Allows disputants to retain control over settlement.

Creates greater psychological ownership because settlement is voluntary.

Usually cheaper and faster than litigation.

Maintains privacy since proceedings are confidential.

Cost and time savings may not always occur.

Some cases may require public court proceedings.

Compared with Arbitration

Very similar to arbitration except the decision is not binding.

Retains many advantages of arbitration.

Also shares arbitration's disadvantages.

May encourage adversarial thinking and positional bargaining.

Compared with Mediation

Very effective where parties strongly disagree about facts or law.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Provides useful BATNA clarification.

Acts as a practice run before litigation.

Unlike facilitative mediation, it focuses more on legal strengths and weaknesses than cooperation.

Summary

Non-binding evaluation combines negotiation and adjudication to help disputants understand the likely outcome of litigation.

Its five main forms are Non-Binding Arbitration, Mini-Trial, Summary Jury Trial, Neutral Evaluation, and Dispute Review Board.

Although the outcome is advisory only, it encourages informed decision-making and increases the chances of settlement without going to court.

Important Exam Points

Non-binding evaluation provides a preview of the likely court outcome.

It combines features of negotiation and adjudication.

Its five forms are Non-Binding Arbitration, Mini-Trial, Summary Jury Trial, Neutral Evaluation, and Dispute Review Board.

Non-binding arbitration gives an advisory decision only.

Mini-Trial uses a summary presentation before representatives with settlement authority.

Summary Jury Trial provides a non-binding jury verdict.

Neutral Evaluation is conducted by legal or technical experts.

Dispute Review Boards are mainly used in large construction projects.

Non-binding evaluation is generally cheaper and faster than litigation.

Its main purpose is BATNA clarification and promoting settlement.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

5 Important MCQs

1. What is the main purpose of non-binding evaluation?

- A) To punish disputants
 - B) To issue a final court judgment
 - C) **To predict the likely outcome of litigation and encourage settlement ✓**
 - D) To replace mediation permanently
-

2. Which form of non-binding evaluation uses senior executives with settlement authority?

- A) Summary Jury Trial
 - B) Neutral Evaluation
 - C) **Mini-Trial ✓**
 - D) Dispute Review Board
-

3. Which process is mainly used during large construction projects?

- A) Neutral Evaluation
 - B) Summary Jury Trial
 - C) Non-Binding Arbitration
 - D) **Dispute Review Board ✓**
-

4. Compared with litigation, non-binding evaluation is generally:

- A) More expensive
- B) Slower
- C) **Cheaper and faster ✓**

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

D) Always public

5. Compared with mediation, non-binding evaluation mainly helps in:

- A) Relationship building
- B) Emotional counseling
- C) **BATNA clarification and legal assessment ✓**
- D) Criminal investigation

Lesson 41: Mixed and Multimodal Dispute Resolution (Summarized Notes)

Designing New Dispute Resolution Systems

Disputes can be resolved through negotiation, adjudication of rights, or power-based actions.

A healthy dispute resolution system resolves most conflicts through negotiation.

Interest-based negotiation is less expensive, faster, and creates mutually beneficial solutions.

Rights-based and power-based methods are used only when negotiation fails.

Six System Design Principles

Focus on interests before rights or power.

Provide low-cost alternatives such as arbitration and voting.

Allow parties to return to negotiation after rights-based or power-based processes.

Encourage consultation before disputes and feedback after resolution.

Arrange dispute procedures from low-cost to high-cost methods.

Provide motivation, training, skills, and resources to support the system.

Steps in Designing a Dispute Resolution System

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Establish a process for designing dispute resolution methods.

Identify recurring conflicts and evaluate current procedures.

Review possible new procedures or improvements.

Select procedures suitable for the organization and disputes.

Combine procedures into one conflict management system.

Gain approval from key stakeholders.

Implement the system and train personnel.

Monitor, evaluate, and improve the system continuously.

Guiding a Disputant

Screening Clerk – Room 1

Mediation – Room 2

Arbitration – Room 3

Fact Finding – Room 4

Malpractice Screening Panel – Room 5

Superior Court – Room 6

Ombudsman – Room 7

ADR and the Internet

Online Dispute Resolution (ODR) uses internet technologies to resolve disputes.

It helps resolve cyber disputes and other conflicts remotely.

Varieties of ODR

ADR through email.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Web-based conferencing.

Multimodal online platforms.

Platforms with analytical tools.

Blind bidding websites.

Online summary jury trials.

Advantages of Online ADR

Removes geographical and time-zone barriers.

Provides quicker communication than letters.

Allows disputants time to think before responding.

Protects intimidated parties.

Keeps hostile parties separated.

Helps people with physical disabilities participate.

Technology improves conflict analysis.

Disadvantages of Online ADR

Difficult for people with limited computer skills.

Requires reliable internet access.

Body language and non-verbal communication are missing.

Technical problems may create additional disputes.

Neutrals cannot observe facial expressions and gestures.

Participants may leave the process before completion.

Dispute Resolution System Design (DSD)

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Usually performed by consultants.

Commonly used in large organizations.

Designed to meet the specific needs of an organization.

Legal Issues in Online Dispute Resolution

Determining where the dispute legally occurred.

Determining where the ADR process is taking place.

Enforcing online settlement agreements.

Extensions of Dispute System Design

Rowe's Recommendations

Promote fairness and protection from retaliation.

Include both interest-based and rights-based options.

Provide multiple access points.

Appoint an organizational ombudsperson.

Cover a wide range of disputes.

Continuously improve the system.

Lynch's Recommendations

Respond to stakeholder interests.

Reflect organizational values.

Support the organization's mission.

Ensure leadership commitment.

Allow movement between negotiation and rights-based methods.

Develop a system that is fair, flexible, friendly, and fast.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Resolve disputes at the lowest possible level.

Shift from conflict resolution to conflict management.

Slaikeu and Hasson's Principles

Recognize four methods of conflict resolution: power, rights, interests, and avoidance.

Include prevention and early intervention.

Build collaboration through structured checkpoints.

Use mediation to achieve consensus.

Summary

Dispute resolution systems help manage personal and workplace conflicts effectively.

Negotiation should always be the first option because it is faster, cheaper, and preserves relationships.

Online Dispute Resolution is becoming increasingly important due to technological advancements.

Effective systems combine prevention, negotiation, ADR methods, and continuous improvement.

Important Exam Points

Interest-based negotiation is the preferred method of dispute resolution.

The six system design principles are highly important for exams.

Dispute Resolution System Design includes eight implementation steps.

Online Dispute Resolution (ODR) resolves disputes through internet technologies.

Legal issues in ODR include jurisdiction, choice of law, and enforcement of settlements.

Rowe, Lynch, and Slaikeu & Hasson proposed important extensions for improving dispute resolution systems.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

5 Important MCQs

1. Which dispute resolution method is considered the least expensive and most cooperative?

- A) Litigation
- B) Arbitration
- C) **Interest-based negotiation** ✓
- D) Power-based action

2. Online Dispute Resolution (ODR) mainly uses:

- A) Newspapers
- B) Telephone only
- C) **Internet technologies** ✓
- D) Court hearings

3. Which principle recommends arranging procedures from low-cost to high-cost?

- A) Build loop-backs
- B) Consultation before feedback
- C) **Low-to-high-cost sequence** ✓
- D) Rights before interests

4. Which of the following is an advantage of Online ADR?

- A) Requires court appearance
- B) **Removes geographical barriers** ✓
- C) Increases legal costs
- D) Uses only paper documents

5. Dispute Resolution System Design is commonly used by:

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

- A) Individual families
- B) Small schools only
- C) **Large organizations** ✓
- D) Sports clubs only

Lesson 42: Conflict Diagnosis and Selecting Dispute Resolution (Summarized Notes)

Introduction

Conflict diagnosis is a practical method for understanding and analyzing interpersonal and legal disputes.

It helps identify hidden interests, emotions, power differences, and relationship issues.

Conflict diagnosis encourages less destructive and more effective methods of resolving conflicts.

Necessity of Conflict Diagnosis

Conflict diagnosis is mentally demanding and time-consuming.

Some lawyers believe it is unnecessary because they focus only on legal issues.

Others believe it is essential because many important conflict factors remain hidden behind the "invisible veil."

Hidden interests, emotions, trust issues, and personal concerns often affect conflict resolution.

Once litigation begins, it becomes difficult to discover these hidden issues.

Uses of Conflict Diagnosis

Conflict diagnosis has two major uses.

Choosing appropriate conflict handling strategies and tactics.

Selecting the most suitable dispute resolution process and provider.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Choosing Strategies and Tactics

Conflict diagnosis should be applied as early as possible.

It helps prevent conflict escalation.

It reduces the chances of future disputes.

It improves the use of available resources.

It protects long-term relationships between disputants.

It strengthens the advocacy role of legal professionals.

Choosing a Dispute Resolution Process

Conflict diagnosis helps select the most suitable ADR process.

This area is still developing and continues to improve.

Proper process selection increases the chances of successful dispute resolution.

Comparing Major Dispute Resolution Methods

Facilitative Mediation

Low cost.

Quick process.

High psychological ownership.

Creative and mutually beneficial outcomes.

Controls conflict escalation.

Promotes procedural fairness.

Suitable for preserving relationships.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Non-binding Evaluation and Evaluative Mediation

Moderate cost.

Provides BATNA clarification.

Limited creativity.

Focuses on legal strengths and weaknesses.

Useful before litigation.

Informal Arbitration

Moderate cost and time.

Less formal than litigation.

Binding decisions in many cases.

Private process.

Limited appeal rights.

Formal Arbitration

Higher cost than informal arbitration.

Legally binding decisions.

Private hearings.

Less flexible than mediation.

Useful for complex legal disputes.

Litigation

Most expensive process.

Longest time for resolution.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Public court proceedings.

Judge or jury makes the final decision.

Limited psychological ownership.

Often increases conflict.

Used when legal judgment is required.

Factors for Comparing Dispute Resolution Methods

Cost.

Time.

Finality of decision.

Psychological ownership.

Quality of consent.

Creativity of outcomes.

Conflict containment.

Conflict escalation.

Invisible-veil thinking.

Procedural justice.

Ability to deal with prejudice.

Handling bargaining power differences.

Disputant transformation.

Use with other ADR methods.

Risk of neutral misconduct.

Special characteristics.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Summary

Conflict diagnosis helps understand hidden causes of disputes before selecting a dispute resolution method.

Choosing the right strategy and ADR process improves efficiency, fairness, and long-term relationships.

Different dispute resolution methods vary in cost, time, flexibility, privacy, and effectiveness.

Understanding the invisible veil helps identify hidden interests and emotions that influence conflicts.

Important Exam Points

Conflict diagnosis identifies hidden interests and underlying causes of disputes.

The two main uses of conflict diagnosis are choosing strategies and selecting ADR processes.

Applying conflict diagnosis early prevents conflict escalation.

Facilitative mediation provides the highest psychological ownership and relationship preservation.

Litigation is the most formal, expensive, and time-consuming dispute resolution method.

The "Invisible Veil" hides important information such as emotions, interests, and trust issues.

5 Important MCQs

1. What are the two main uses of conflict diagnosis?

- A) Mediation and litigation
- B) **Choosing strategies and selecting dispute resolution processes ✓**
- C) Arbitration and negotiation
- D) Investigation and punishment

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

2. According to the lesson, conflict diagnosis should be applied:

- A) After court judgment
- B) During appeal
- C) **As early as possible ✓**
- D) Only after mediation

3. Which dispute resolution method provides the highest psychological ownership?

- A) Litigation
- B) Formal Arbitration
- C) Non-binding Evaluation
- D) **Facilitative Mediation ✓**

4. The "Invisible Veil" mainly hides:

- A) Court procedures
- B) Legal documents
- C) **Hidden interests, emotions, and trust issues ✓**
- D) Arbitration awards

5. Which dispute resolution method is generally the most expensive and time-consuming?

- A) Mediation
- B) Informal Arbitration
- C) Formal Arbitration
- D) **Litigation ✓**

Lesson 43: Conflict Diagnosis and Selecting the Best Dispute Resolution Process (Summarized Notes)

Introduction

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Conflict escalation hides important information and reduces rational thinking.

Anger is part of the invisible veil and prevents people from recognizing hidden interests.

Conflict diagnosis helps select the most suitable dispute resolution process.

Factors that Reduce the Effectiveness of Facilitative Mediation

If the other disputant refuses to participate, facilitative mediation may not be possible.

An unfamiliar mediation process may reduce the quality of consent.

Unclear BATNAs may lead to poor decision-making.

Large differences in legal or factual understanding may create deadlocks.

Urgent situations may require immediate legal enforcement.

An untrustworthy disputant may cause irreparable harm.

Legal reform objectives may not be achieved through mediation.

Power imbalance may lead to unfair agreements.

Limited time or money may reduce the usefulness of facilitative mediation.

Proposed Contents of a Client Interview

Summary of the client interview.

Description of the client's problems and goals.

Identification of likely causes of conflict.

Sociogram showing participants and their roles.

Analysis of the client's and other disputants' interests.

Evaluation of how interests affect the conflict.

Assessment of conflict escalation and trust.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Identification of barriers to cooperative resolution.

Assessment of each party's sources of power.

Analysis of the client's BATNA and the other party's BATNA.

Information needed for legal and factual preparation.

Selection of suitable strategies and tactics.

Planning the next steps, such as research, interviews, and referrals.

Collaborative Law

Collaborative law is mainly used in family law.

The lawyer agrees to pursue cooperative and interest-based negotiation.

If litigation begins, the lawyer must withdraw from representing the client.

The goal is to encourage peaceful settlement instead of court proceedings.

Fitting the Forum to the Fuss

This approach was developed by Frank Sander and Stephen Goldberg.

Different dispute resolution methods are suitable for different client needs.

The best process depends on the client's objectives.

Client Objectives

Minimize costs.

Speed of resolution.

Privacy.

Maintain or improve relationships.

Obtain vindication.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Receive a neutral opinion.

Create legal precedent.

Maximize or minimize financial recovery.

Conflict Diagnosis Approach

Facilitative mediation is considered the first choice.

If facilitative mediation is unsuitable, alternative ADR methods should be selected.

Lawyers should first try to overcome barriers before choosing another process.

Impediments to Facilitative Mediation

The other party refuses to participate.

Fear of appearing weak.

Unknown or uncertain BATNA.

Major differences in BATNA assessments.

Limited time or financial resources.

Need for immediate legal action.

Untrustworthy disputant.

Interest in changing the law.

Previous facilitative mediation failed.

Best Dispute Resolution Processes

Pure mediation promotes collaboration and joint problem-solving.

Transformative mediation encourages empowerment and recognition.

Both methods reduce zero-sum thinking and improve cooperation.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

They help parties move beyond the invisible veil.

Summary

Conflict diagnosis helps lawyers and disputants choose the most effective dispute resolution strategy.

Facilitative mediation is generally the preferred option because it promotes cooperation and high-quality consent.

When mediation is unsuitable, other ADR methods should be selected according to the client's objectives and the nature of the conflict.

Understanding BATNA, hidden interests, and the invisible veil leads to better conflict resolution.

Important Exam Points

Conflict escalation hides important information through the invisible veil.

The client interview consists of 13 important components.

Collaborative law requires the lawyer to withdraw if litigation begins.

Fitting the Forum to the Fuss matches dispute resolution methods with client objectives.

Facilitative mediation is the default dispute resolution method.

Major impediments include refusal to participate, uncertain BATNA, lack of trust, and urgent legal enforcement.

5 Important MCQs

1. According to conflict diagnosis, anger mainly affects:

A) Legal documents

B) **Rational thinking and recognition of hidden interests** ✓

C) Court procedures

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

D) Arbitration awards

2. Collaborative law is most commonly used in:

A) Criminal law

B) Corporate law

C) **Family law** ✓

D) Tax law

3. "Fitting the Forum to the Fuss" was developed by:

A) Porter and Deming

B) Fisher and Ury

C) **Frank Sander and Stephen Goldberg** ✓

D) Thomas and Kilmann

4. According to the conflict diagnosis approach, the default dispute resolution process is:

A) Litigation

B) Arbitration

C) Non-binding Evaluation

D) **Facilitative Mediation** ✓

5. Which of the following is an impediment to facilitative mediation?

A) High psychological ownership

B) Cooperative attitude

C) **Uncertain BATNA** ✓

D) Strong relationship between disputants

Lesson 44: Panchayats and Jirgas (Summarized Notes)

Introduction

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Panchayats and Jirgas are traditional local government systems.
They regulate social justice and local development.
They have existed in the subcontinent for centuries.
They are considered traditional forms of Alternative Dispute Resolution (ADR).
Today, they are part of local governance in many developing countries.

Panchayat

Panchayat means a village council.
It literally means an assembly of five respected elders.
The elders are selected and accepted by the local community.
Another name for Panchayat is Jirga.

Jirga

Jirga is a Pashto term for an assembly of tribal elders.
It settles disputes through consensus.
It is common among Pashtuns in Pakistan and Afghanistan.
Loya Jirga is a grand assembly that resolves national or political issues.

Difference Between Panchayat and Jirga

Panchayat is commonly used in South Punjab and India.
Jirga is commonly used in Khyber Pakhtunkhwa and Afghanistan.
Both terms are used in Pakistan depending on the region.

Functions of Panchayat

Settles disputes between individuals and villages.
Addresses local social and community issues.
Supports local administration and development.
Acts as a traditional ADR system.
Provides justice at the village level.

Types of Panchayat

Village Panchayat consists of members from the same village.
Inter-Village Panchayat resolves disputes between villages.
Biradari Panchayat settles disputes between different families or clans.

Popularity of Jirga

Jirga is popular because it is quick and inexpensive.
Court delays increase its importance.
Weak police and justice systems encourage its use.
Traditional customs and lack of education also support the system.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Frontier Crimes Regulation (FCR) 1901

FCR recognized tribal Jirgas in certain tribal areas.
Jirga decisions were treated as legal advice but often became binding.
The law applied mainly to tribal regions.
It has been criticized by higher courts.

Powers of Jirga under FCR

Can hear both civil and criminal cases.
Usually no appeal is allowed against its decisions.
Commissioner may review a case.
Can impose fines, whipping, life imprisonment, demolition of property, and blockades.
Cannot legally award capital punishment.

Jirga and Jury System

Jury decisions are limited by state laws.
Jirga often exercises broader customary powers.
Jirga decisions have been criticized for discrimination against women.

Panchayati Raj System

Panchayati Raj is a decentralized local government system in India.
Gram Panchayat is the basic administrative unit.
It was institutionalized through the 73rd Constitutional Amendment in 1992.
Its purpose is to increase public participation in local governance.

Funds of Panchayat

Funds are received through local body grants.
Funds are provided for centrally sponsored schemes.
State governments also provide financial support.
The head of Panchayat is called Sarpanch.
Members are called Panch.
Decisions are made through majority vote.

Three Levels of Panchayat

Village Level is called Gram Panchayat.
Block Level is called Panchayat Samiti.
District Level is called Zilla Parishad.

73rd and 74th Constitutional Amendments

Recognized Panchayats and Municipalities as self-government institutions.
Established Gram Sabha as the basic democratic unit.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Introduced a three-tier Panchayat system.
Members are elected through direct elections.
Reserved seats for Scheduled Castes, Scheduled Tribes, and women.
Fixed a five-year term for Panchayats.
New elections must be held within six months after dissolution.

Zilla Parishad

Works at the district level.
Plans and supervises rural development.
Monitors Panchayat Samitis and Gram Panchayats.
Uses central, state, and local funds for development.

Panchayat Samiti

Works at the block level.
Plans and supervises development projects.
Headed by the Sabhapati.
The Block Development Officer serves as Executive Officer.

Gram Panchayat

Lowest unit of Panchayati Raj.
Responsible for village administration and development.
Headed by the Pradhan.
Members are elected by the people.

Gram Sabha

Assembly of all registered adult voters.
Acts as the supervisory body.
Approves plans and expenditure.
Conducts social audits.
Can recommend removal of Panchayat officials.
Ensures accountability and transparency.

Functions of Gram Sabha

Promotes public participation.
Approves beneficiaries of welfare schemes.
Reviews Panchayat accounts.
Supervises Panchayat performance.
Strengthens local democracy.

Modern Functions of Panchayat

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

General administration.
Agriculture and agricultural extension.
Animal husbandry.
Fisheries.
Forestry.
Village industries.
Rural housing.
Drinking water.
Roads and communication.
Rural electrification.
Renewable energy.
Poverty alleviation.
Primary education.
Adult education.
Libraries.

Other Functions of Panchayat

Organizes cultural activities.
Manages markets and fairs.
Improves rural sanitation.
Promotes public health.
Supports women and child development.
Provides social welfare services.
Protects weaker sections.
Maintains community assets.
Constructs cattle sheds and ponds.
Maintains slaughterhouses.
Develops parks and playgrounds.
Performs other functions assigned by the government.

Important Exam Points

Panchayat means an assembly of five respected elders.

Jirga is a tribal council that decides disputes through consensus.

Panchayat and Jirga are traditional forms of ADR.

Three types of Panchayats are Village, Inter-Village, and Biradari Panchayat.

FCR 1901 legally recognized Jirga in tribal areas.

Jirga can hear both civil and criminal cases but cannot legally award capital punishment.

Panchayati Raj was established through the **73rd Constitutional Amendment (1992)**.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Three levels of Panchayati Raj are **Gram Panchayat, Panchayat Samiti, and Zilla Parishad.**

Sarpanch is the head of the Panchayat, while Panch is its member.

Gram Sabha is the foundation of local self-government and supervises Panchayat activities.

10 Important MCQs

1. Panchayat literally means:

- A) Village Court
- ✓B) Assembly of five respected elders
- C) District Council
- D) Police Committee

2. Jirga is mainly associated with which community?

- A) Sindhis
- B) Punjabis
- ✓C) Pashtuns
- D) Baloch

3. Which law recognized Jirga in tribal areas?

- A) Pakistan Penal Code
- B) Arbitration Act 1940
- ✓C) Frontier Crimes Regulation (FCR) 1901
- D) Local Government Act

4. Which is NOT a type of Panchayat?

- A) Village Panchayat
- B) Inter-Village Panchayat
- C) Biradari Panchayat
- ✓D) Federal Panchayat

5. Who is the head of a Panchayat?

- A) Pradhan
- B) Panch
- ✓C) Sarpanch
- D) Commissioner

Lesson 45: Introduction to Conflict Management (Summarized Notes)

Conflict

Conflict is a natural and unavoidable part of human life.

It exists within individuals and between people, groups, organizations, and nations.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Conflict may involve differences in ideas, values, beliefs, opinions, attitudes, or goals.

Conflict is not always negative; it can promote change, creativity, and development.

Conflict is mainly based on perception. If people believe their goals are incompatible, conflict exists.

Conflict can be healthy or unhealthy depending on how it is managed.

Conflict should not be considered the opposite of order because conflict may also have structure and organization.

Organizations experience conflict due to changing environments and limited resources.

Managers must learn to manage conflict effectively instead of avoiding it.

Definitions of Conflict

Conflict is a state of disagreement or incompatibility between two or more people or groups.

It is opposition between persons, ideas, or interests.

It may also be a hostile encounter between individuals or groups.

Interpersonal Conflict

Interpersonal conflict is the actual or perceived incompatibility of goals between two or more people.

Conflict may remain hidden (latent) if the parties are unaware of it.

Conflict Resolution

Conflict resolution means resolving disputes through peaceful and constructive methods.

It developed from the belief that violence and court litigation are not always the best solutions.

Today, Alternative Dispute Resolution (ADR) and conflict resolution are often used interchangeably.

Conflict resolution also promotes communication, cooperation, and problem-solving skills.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Alternative Dispute Resolution (ADR)

ADR refers to methods of resolving disputes without traditional court litigation.

ADR avoids violence and illegal methods.

ADR provides quicker, less expensive, and more peaceful solutions.

Main Forms of ADR

Negotiation

Negotiation is a discussion between two or more parties to reach an agreement.

It focuses on solving problems through communication and bargaining.

Negotiation has two elements:

Process → How negotiations are conducted.

Substance → What issues are being negotiated.

Mediation

Mediation is a voluntary and confidential process.

A neutral mediator helps both parties discuss issues and reach their own agreement.

The mediator does not make the final decision.

Conciliation

Conciliation uses a neutral third party to improve communication.

The conciliator meets parties separately and encourages dialogue.

It is useful when parties refuse to communicate directly.

Arbitration

Arbitration involves a neutral arbitrator.

The arbitrator hears both sides and gives a decision to resolve the dispute.

It is commonly used in commercial and labor disputes.

Adjudication

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Adjudication is a formal legal process.

A judge or legal authority reviews evidence and gives a legally binding decision.

It resolves disputes between individuals, organizations, and government bodies.

Types of Disputes Resolved by Adjudication

Disputes between private individuals or companies.

Disputes between private parties and public officials.

Disputes between government officials or public institutions.

ADR in Pakistan

Pakistan recognizes ADR through different laws and legal provisions.

Important legal provisions include:

Section 89-A of the Civil Procedure Code (1908).

Small Claims and Minor Offences Courts Ordinance (2002).

Local Government Ordinance (2001).

Family Courts Act (1964).

Arbitration Act (1940).

Articles 156 and 184 of the Constitution of Pakistan (1973).

Conflict Management

Conflict management is both an art and a skill.

Conflicts should first be identified and understood.

The interests of all parties should be analyzed.

Different conflict resolution methods may be combined when needed.

Selecting the right strategy leads to peaceful and effective conflict resolution.

Important Exam Points

Conflict is a natural and inevitable part of human relationships.

HRM624 IMPORTANT NOTES + EXAM KEY POINTS + LECTURE WISE MCQS

Conflict is mainly based on perception.

Interpersonal conflict may be actual or perceived.

ADR means resolving disputes without court litigation.

Five major ADR methods are Negotiation, Mediation, Conciliation, Arbitration, and Adjudication.

Negotiation has two elements: Process and Substance.

The mediator facilitates discussion but does not make decisions.

The conciliator improves communication between parties.

The arbitrator gives a decision after hearing both sides.

Adjudication is a formal legal process conducted by a judge.

Pakistan legally recognizes ADR through several laws and constitutional provisions.

Conflict management requires understanding interests and choosing the most suitable resolution strategy.

10 Important MCQs

1. Conflict is primarily considered as:

- A) Legal problem
- B) Financial issue
- C) ✓ **Perceived phenomenon**
- D) Physical dispute

2. Interpersonal conflict refers to:

- A) Conflict between countries
- B) ✓ **Incompatibility of goals between two or more people**
- C) Religious disagreement
- D) Political conflict

3. ADR stands for:

- A) Advanced Dispute Rules
- B) Administrative Dispute Resolution
- C) ✓ **Alternative Dispute Resolution**
- D) Authorized Dispute Review

4. Which ADR method allows parties to make their own decisions?

- A) Arbitration
- B) Adjudication

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- C) ✓Mediation
- D) Litigation

5. In mediation, the mediator:

- A) Gives a final judgment
- B) Punishes the parties
- C) ✓Helps parties reach their own agreement
- D) Represents one party

THE END

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